

DESCRIPTION/SPECIFICATION/WORK STATEMENT
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GENERAL REQUIREMENTS

C.1 General Information

Except where otherwise stated, the Contractor shall furnish all labor, supervision, management, tools, materials, equipment, facilities, transportation, incidental engineering, and other items necessary to perform renovations, repairs, maintenance, replacements, alterations, and demolition task orders awarded under this Firm Fixed-Price (FFP), Indefinite Delivery, Indefinite Quantity (IDIQ) Job Order Contract (JOC). Work will be performed within the NAVFAC Djibouti geographic area of responsibility which supports Naval Support Activity (NSA) Camp Lemonnier, Djibouti and Chabelley Air Field, Djibouti and US Government controlled sites throughout Somalia. Specific site locations shall be coordinated through the Resident Officer In Charge of Construction (ROICC) of the Public Works Department, Camp Lemonnier.

Individual Task Order requests will provide Government performance requirements and standards. The Contractor is required to comply with all applicable U.S. federal and local host nation laws and regulations. All work performed shall conform to the Naval Facilities Engineering Systems Command (NAVFACSYSCOM) Guide Specifications, standard industry work practices, and the provisions of this contract. In accordance with NAVFAC instructions, Whole Building Design Guide and (UFGS 01 78 24.00 20 and UFGS 01 78 23 electronic Operation and Maintenance Support Information (eOMSI) processes and data shall be provided for all applicable projects. Unless otherwise directed by the KO or his/her designated representative, all work must be in accordance with 2022 DOW Building Code (UFC 1-200-01) with changes to date and all referenced standards therein including 2021 International Building Code (IBC), 2021 International Existing Building Code (IEBC), and the latest versions of UFC 3-410-01, UFC 3-420-01, UFC 3-600-01, UFC 1-200-02, and UFC 3-501-01. Standards referenced in the UFC are included by reference including the International Mechanical Code (IMC), International Plumbing Code (IPC), Fire Code (NFPA 1), Life Safety Code (NFPA 101), International Energy Conservation Code (IECC), International Green Construction Code (IgCC), National Electrical Code (NFPA 70) and International Residential Code (IRC), latest versions. In accordance with UFC 1-200-01, all work must be in accordance with the Core UFCs (Unified Facilities Criteria) as relevant to the individual task orders. All Core UFCs are identified in UFC 1-200-01 (DOW Building Code). All industrial references and standards referenced in Core UFCs are incorporated by reference. These Codes take precedence over all other direction provided herein or as part of individual Task Orders.

C.1.1 Contract Type and Term

This is a Firm Fixed Price (FFP), Indefinite-Delivery, Indefinite-Quantity (IDIQ) contract with a one-year base period plus four one-year option periods. The Government may exercise option periods at its discretion. Individual FFP Task Orders issued hereunder shall specify delivery or performance requirements. Typically, projects will be within the minimum/ maximum dollar range of \$2,000 to \$8,000,000. Work ordered under this contract will not require the Contractor to provide designs. All Task Order work will require scope development by the Contractor. In select cases, the Government will provide design or basis for design. The Contractor may be required to provide narratives, sketches, material catalog cuts, and quantity take-off with each Task Order proposal to ensure common understanding. Pricing for each Task Order will be by pre-priced (R.S.MEANS Cost Data) and non-pre-priced methods.

C.1.2 Basic Principles of the JOC

A major element of the JOC process is the use of applying a coefficient (multiplier) to proposal costs in order to calculate the proposed cost for a task order. The coefficient must include not only the Contractor's overhead and profit, but also all other costs associated with doing business that are not represented in the R. S. MEANS bare costs or in Subcontractor's proposals.

For each project, the Government and the Contractor follow the same steps:

1. Conduct a Joint Scope Meeting at the site to review and discuss the work and the construction schedule;
2. Prepare a Detailed Scope of Work;
3. Government issues a Request for Proposal;

4. Contractor prepares a price proposal in the format requested and submits a proposed construction schedule, list of Subcontractors and other documents required by the Task Order;
5. Government reviews the proposal to ensure the right tasks and quantities were used;
6. Government and Contractor negotiate price and schedule
7. If Government is in agreement with price, schedule, Subcontractors, etc. it may issue a Task Order for the project.

C.1.3 Construction Permit and License Requirements

The Contractor is required to understand and comply with all local host nation environmental and usage permit requirements. The Contractor shall, in select cases, obtain, at no additional expense to the Government, all appointments, licenses, any additional taxes, company registration fees, or fees related to employing foreign workers and permits required to perform work under this contract. The Contractor shall provide evidence of such permits and licenses to the KO before work commences and at other times as requested by the KO.

C.1.4 Performance Requirement

The services provided by this contract are vital to the Government's overall effort, and continuity must be maintained at a consistently high level without interruptions. The Contractor shall be mobilized and prepared to work onsite within 30 days of contract award. The Contractor is expected to meet full performance requirements from the start of the period of performance of the contract. The contractor shall receive and respond to Requests for Proposals, prepare estimates, receive and respond to task orders, and order material and prepare schedules for indefinite quantity work where the actual performance will begin after the contract start date.

C.2 MANAGEMENT AND ADMINISTRATION

C.2.1 Permits and Licenses

The Contractor shall obtain all required permits, licenses, and authorizations to perform work under each individual task order and comply with all the applicable US Department of War (DoW) and host nation local laws and regulations. Individual Task Orders will identify permit requirements.

C.2.2 Directives, Instructions and References

Applicable Department of War (DOW), Secretary of the Navy (SECNAV), Chief of Naval Operations (OPNAV), and other directives, instructions, codes and references may be provided in individual Task Orders.

C.2.3 Government Furnished Facilities, Equipment, Materials and Services

In accordance with FAR 52.236-14 Availability and Use of Utility Services, the Government will furnish water and electricity at existing outlets required for the work to be performed under the contract at no cost to the Contractor. Information concerning the location of existing outlets may be secured from the Contracting Officer's Representative. The Contractor shall provide and maintain, at its expense, the necessary service lines from the existing Government outlets to the work site and provide and maintain backflow prevention devices on connections to domestic water lines and electrical transformer provisions on connections to electric lines. Meet all US DOW, host nation local, and activity codes and regulations for backflow prevention devices and electrical transformer provisions. Services required by the Contractor, for which there are no available Government outlets, shall be provided by the Contractor at no cost to the Government.

1. Facilities. The Government will designate an area for contractor operations during the term of the contract to include Job Site Laydown areas and areas for Office space. The Contractor will be responsible for providing Administrative/Office Space. Additional Job Site Laydown Areas may be established for individual Task Orders as situations may require. The contractor will comply with all the installation's requirements for storing materials at the laydown area.
2. Material and Equipment. Infrequently the Government may provide materials or equipment to be installed by the Contractor. The labor and material costs necessary for the installation will be considered non-pre-priced items as described herein.

- (a) The Contractor, with his/her own forces, shall transport all Government-furnished

equipment/materials described on the Task Order at his/her own expense. The equipment/materials will be transported from the Government storage area to the work site indicated on the Task Order.

(b) The Contractor assumes the risk and responsibility for the loss or damage to Government-furnished property.

3. Availability of Utility Service. Pursuant to FAR 52.236-14, *Availability and Use of Utility Services*, Section I, reasonable amounts of water and electricity (at existing outlets) will be made available to the Contractor without charge, as soon as may be scheduled. The Contractor shall pay all costs incurred in connecting, converting and transferring the utilities from existing outlets to the work. The Contractor shall be responsible for making connections, providing transformer(s), etc., and making disconnection.
4. Liability and Government-Owned Property. The Contractor shall be held financially liable and responsible for any damage to Government property that is incurred due to his/her fault or negligence or the fault or negligence of his/her employees in the performance of this contract.

C.2.4 Contractor Furnished Items

Except for items identified as Government Furnished, the Contractor shall provide all equipment, materials, parts, supplies, components, and facilities to perform the requirements of this contract. The KO or designated Government representative may inspect Contractor-furnished items for adequacy and compliance with contract requirements. Inadequate or unsafe items shall be removed and replaced by the Contractor at no cost to the Government. Materials containing asbestos, lead, and PCBs shall not be brought on site. The KO may at any time require Samples, Safety Data Sheets (SDS) or Manufacturer's Data Cut Sheets of Materials used in this contract.

1. Equipment. The Contractor shall furnish administrative supplies and equipment. Items of equipment necessary to perform work as required or ordered under this contract shall be furnished, maintained and operated by the Contractor.

The Contractor shall cover equipment that is to remain in place within the area of contract operations and protect it against damage or loss. Equipment temporarily removed shall be protected, cleaned and replaced equal to its condition prior to starting work. Security for equipment or material that is to be reused and is removed for temporary storage shall be the sole responsibility of the Contractor.

2. Materials and Supplies. Materials and supplies procured by the Contractor shall meet the specifications, standards, and manuals listed in these specifications. The KO or COR may require test data showing that any materials or supplies procured by the contractor meets the specifications. The KO or COR may at any time require samples of materials to be used in work performed under this contract. If the quality of an item is not specified, it shall be of acceptable industrial grade and quality, equal to or better than the manufacturer's original and will be compatible with existing systems.
3. Parts. Replacement parts shall be new. If new parts are not available, the Contractor may request approval in writing from the KO to use rebuilt parts. All parts whether new or rebuilt shall carry the full warranty required by this contract.
4. Damage or Loss of Contractor's Supplies and Employee Property: The Government does not assume any liability from fire, theft, accident, or any other cause resulting in damage or loss of Contractor supplies or employees property.

C.2.5 Management

The Contractor shall manage the total work effort associated with the services required herein to meet the performance objectives and standards. Such management includes but is not limited to planning, scheduling, cost accounting, report preparation, establishing and maintaining records, and quality control. The Contractor shall provide a staff with the necessary management expertise to assure performance objectives and standards are met.

C.2.6 Personnel Requirements

C.2.6.1 Key Personnel

The Contractor shall provide the KO the List of Key Personnel and their qualifications. The Contractor shall submit this information within 15 calendar days of award of the contract. Other submittal requirements of this deliverable are posted in Section F – Deliveries or Performance. The KO shall approve any changes to key personnel. The Contractor will provide any additional information requested by the KO to certify their qualifications.

The Contractor shall submit to the KO a finalized Organizational Chart showing the lines of authority of the key personnel and on-site supervisor(s) for this contract. Submittal requirements for this deliverable are posted in Section F – Deliveries or Performance. The chart shall include names of personnel and their position title in this contract. At a minimum, include the Project Manager (PM), Quality Control Manager (QCM), Site Safety and Health Officer (SSHO), and on-site supervisor(s) and who they will report directly to for this contract. The key personnel shall be revised as applicable for the contract. The Contractor shall have the ability for senior leadership to communicate directly with the Government in English, both written and verbal.

C.2.6.1.1 Project Manager (PM)

The Contractor shall provide a PM who has relevant experience at a comparable level of responsibility in projects of similar size, scope and complexity. The PM must have the ability to be productive on multiple projects simultaneously at different locations. The PM shall have full authority to act for the Contractor on all contract matters relating to this contract.

C.2.6.1.2 Site Safety and Health Officer (SSHO)

The Contractor shall provide a SSHO whose primary duty and responsibility is to prepare and enforce the Contractor's safety program on this contract. The SSHO shall have fulfilled the following pre-requisite training and experiences before being hired as the SSHO under this contract:

The SSHO shall have completed five years of satisfactory experience in preparing and enforcing safety programs on contracts of similar size and complexity in the past, and have completed the OSHA 30-hour construction safety class or equivalent within the last five years and an average of at least 24 hours of safety training per year for the past five years. The SSHO shall serve as the SSHO solely and may not assume any additional organizational role for the Contractor. More specific qualification and performance requirements for the SSHO are detailed in paragraph C.16.6.

C.2.6.1.3 Quality Control Manager (QCM)

The Contractor shall provide a QCM who shall have full authority and responsibility for assuring performance objectives and standards identified in Task Orders are met. The QCM may or may not be the same person as the PM, unless specified under requirements of individual Task Orders. In the case where an individual Task Order requires that a QCM cannot serve separate functions, such services shall be included as a non-pre-priced item in that Task Order. More specific qualification and performance requirements for the QCM are detailed in paragraph C.17.

C.2.6.2 Employee Requirements

The Contractor shall provide experienced, qualified, and capable personnel to perform the work in this contract. Personnel shall be fully knowledgeable of all safety and environmental requirements associated with the work they perform. Competent personnel shall be provided as required by each Task Order.

C.2.6.2.1 Employee Appearance

The Contractor shall ensure that all employees present a professional appearance that is appropriate for their position. The KO reserves the right to determine the acceptability of any clothing worn. Employee identification shall not be substituted for station required passes or badges.

C.2.6.2.2 Employee Conduct

Contractor employees and Subcontractor employees shall conduct themselves in a proper, efficient, courteous and businesslike manner.

C.2.6.2.3 Removal of Employees

The Contractor shall remove from the site any individual whose continued employment is deemed by the ROICC and/or KO to be contrary to the public interest or inconsistent with the best interests of National Security.

C.3 TASK ORDER PRICING

There are three separate pricing proposal methodologies for Task Orders that will be accepted on this contract. They are, as follows:

1. Projects using R. S. MEANS , in which all items are pre-priced using the R. S. MEANS Data Costing Workbook
2. Projects using non-pre-priced items (i.e., three competitive quotes or self-performed work)
3. Projects using a combination of R. S. MEANS and non-pre-priced items. Projects using this combination method must have at least 51% of the task order's total value pre-priced through R. S. Means.

Upon issuance of a Task Order Request for Proposal (RFP), the KO will specify whether or not the Task Order will use R. S. MEANS. If R. S. MEANS is specified, the Contractor will submit a proposal using either Pre-Priced Work alone, or a combination of pre-priced and non-pre-priced items, dependent upon the description of the work to be performed. **The decision to use R. S. MEANS based pricing or non-pre-priced methods shall be determined solely by the Government. Any proposal that contradicts the pricing methodology instructed in the RFP will not be accepted.**

Task Order specific requirements for items not included in the Contractor's Coefficient will be addressed as a separate cost on the Task Order proposal.

Task orders will be issued in U. S. Dollars.

C.3.1 Pre-Priced Work

Items/prices identified in R. S. MEANS Cost Data Books are referred to as "PRE-PRICED ITEMS". When the Government instructs the Contractor to submit a proposal using R. S. Means, items shall be identical to or a reasonable equivalent to those found within the R. S. MEANS Cost Data Books. Pricing will be determined by using R. S. MEANS Cost Data Books and the Contractor's Coefficient factor. The Contractor shall break down the work into individual work items, selecting the applicable Bare Cost Unit Pricing for material, labor, and equipment from R. S. MEANS Cost Data Books. The total price is calculated by multiplying the R. S. MEANS Bare cost sum to the Contractor's applicable Coefficient factor. This total is then added to any applicable material sale/use taxes to obtain a grand total.

C.3.2 Non-Pre-Priced Work (Competitive Quote or Self-Performed Work)

Non-pre-priced items are defined as construction materials, services, and work which are not listed by the R. S. MEANS Cost Data Books, and that have not been added to a pre-priced items list via modification to the basic JOC.

The Government will accept non-pre-priced work for materials or services when identical or similar items are not listed in the R. S. MEANS Cost Data books, or when it is deemed to be in the best interest of the Government. The Government reserves the right to request proposals based on non-pre-priced methodologies for any project. The Contractor shall determine whether to use Competitive Quotes or to self-perform the non-pre-priced Items. R. S. MEANS will not be used whatsoever in either of these pricing methodologies. Non-pre-priced items are subjected to the procedures described in the paragraphs below.

C.3.2.1 Competitive Quotes:

When using Competitive Quotes for non-pre-priced items, the Contractor shall provide the following for

each Subcontractor quote for each component or task required:

1. Total amount for Fully Burdened Labor Hours
2. Total amount for Fully Burdened Material
3. Total amount for Fully Burdened Equipment

The Contractor need not have more than one quote for non-pre-priced line items under \$10,000, provided that the Contractor ensures that fair and reasonable prices are obtained for services or materials. For services or materials in excess of \$10,000, the Contractor will obtain a minimum of three quotes from qualified Subcontractors. Any circumstances precluding the minimum three quotes will be justified within the Contractor's proposal. The Contractor shall maintain complete supporting documentation (including responsibility and responsive checks) necessary to provide a complete and accurate audit trail of all actions for the KO's review. Upon receipt and review of the form by the KO, a coordination meeting may be initiated with the Contractor to resolve any discrepancies. Upon satisfactory review by the KO, the non-pre-priced work will be accepted as the negotiated price. The negotiated price shall include the fully burdened rate for labor, material, and equipment, multiplied by the appropriate coefficient for competitive quotes.

C.3.2.2 Self-Performed Work:

When the Contractor chooses to use in-house labor for non-pre-price items, the Contractor shall provide the following for each component or task required:

1. Item Description
2. Direct Labor Hours
3. Description of proposed material
4. Number of units of material
5. Cost per unit of material (direct/bare costs only)
6. Description of proposed equipment
7. Time for which equipment will be required
8. Rental rate for equipment (direct/bare costs only)
9. Profit and overhead, if applicable

The Contractor's proposal for non-pre-priced line items will be considered, as submitted, for services or materials under \$3,000, provided the Contractor ensures that fair and reasonable prices are obtained. For services or materials in excess of \$3,000, the Contractor shall submit to the KO a detailed quote abstract for self-performance. The Contractor shall maintain complete supporting documentation (including responsibility and responsive checks) necessary to provide a complete and accurate audit trail of all actions for the KO's review. Upon receipt and review of the abstract by the KO, a coordination meeting may be initiated with the Contractor to resolve any discrepancies. Upon satisfactory review by the KO, the non-pre-priced work will be accepted as the negotiated price. The negotiated price shall include the fully burdened rate for labor, material, and equipment, multiplied by the Contractors Coefficient for Self-Performed work.

C.3.3 Combination Pricing for Pre-Priced and Non-Pre-Priced Items.

Pre-priced items shall fall under the pricing methodology for pre-priced work (see paragraph C.3.1). Non-pre-priced items shall fall under one of the pricing methodologies described for non-pre-priced work (see paragraph C.3.2).

Non-pre-priced Items cannot represent the majority of the Task Order value and therefore will not exceed 49% of the Task Order value. Projects that cannot show a minimum of 51% Task Order value in pre-priced work shall automatically fall under the pricing methodology of non-pre-priced work (see paragraph C.3.2).

C.4 COEFFICIENTS

C.4.1 The Contractor's coefficient factor is a numerical factor that represents costs (generally indirect) not included as part of the R. S. MEANS Cost Data Books Bare Costs. All requirements of performance described in Section C shall be included in the coefficients unless specifically exempt elsewhere in this contract.

C.4.2 The coefficient factor must include, but is not limited to the items listed below:

- General and Administrative Costs, Corporate Overhead, and Field Office Overhead, including but not limited to: salaries of personnel required to operate and manage the contract, Information Technology and computer equipment required to manage the contract, off base storage facilities, offices, administrative supplies, technical engineering services, job site supervision, vehicle operations and maintenance expenses and telephone charges.
- Disposition of waste materials.
- Daily and final site cleanup.
- Bond Premiums.
- Employee, Builder's Risk and Public Liability Insurance costs.
- Costs for purchase of equipment and vehicles; tools of the trade.
- Office equipment and supplies.
- Compliance with safety laws, regulations, and standards.
- Compliance with security requirements.
- Compliance with environmental laws associated with performing work in compliance with:
 - environmental laws/regulations/requirements,
 - individual Station regulations and reporting requirements, and
 - standard licenses, permits, and training (EXCEPT specialized licenses, permits, and training required specifically for a unique Task Order)
- The Contractor's risk factor.
- Company officers and support staff.
- Superintendents.
- Quality control, including daily Quality Control Reports.
- Submittal preparation.
- Employer's portion of payroll taxes and fringe benefits.
- Profit.
- All costs associated with computer hardware/software applications.
- Permits and Licenses

Because the foundation of pre-priced items is based on bare costs in the R. S. MEANS Costing Workbook, the Contractor's Coefficient must include the mark-up percentage for a prime-Subcontractor relationship if the Contractor is planning to sub-contract any portion of pre-priced items. All Contractor task order bids attempting to utilize RS Means line item costs pre-burdened with overhead and profit will be returned for revision. The following illustrates acceptable and unacceptable proposals (this is an example only and is not indicative of a desired Coefficient or division of fees between subs and prime, as those are unique to each Contractor):

Scenario 1: Pre-Priced Line Items		Scenario 2: Competitive Quotes		Scenario 3: Self-Performed Works	
R.S. Means Bare Cost	\$100	Selected proposal	\$100	Pre-Priced Line Items	\$50
				Quote Abstract	\$50
Prime Contractor Coefficient	1	Prime Contractor's Coefficient	1.2	Pre-Priced Coeff.	1
				Self-Performed Co-eff.	1.2
Sales/Use Taxes	\$10	Cost to Govt.		Sales/Use Taxes on PP	\$5
Cost to Govt.	\$110		\$120	Cost to Govt.	\$115

Waste and excess quantities are included in Completed-in-Place construction quantities. All prices in R. S. MEANS Cost Data Books are for Completed-in-Place construction unless explicitly described otherwise. Quantities used on individual Task Order proposals shall be taken from field measurement or design plans, as appropriate, without allowance for waste.

The costs for preparation of Task Order proposals including scoping meetings shall be the

responsibility of the Contractor and shall be included in the appropriate coefficient. Task Order proposal preparation is not directly reimbursable. Government requests for Task Order proposals shall not constitute an award or commitment.

C.4.3 Proposals for modifications shall be priced in the same manner as submitted under the original proposal.

C.4.4 The Contractor's coefficient shall be a reflection of bare costs plus the cost of doing business. The proposed Coefficient shall be a reflection of the Offeror's business practices and objectives. The range may be less than or equal to the bare costs (e.g. .99) or a percentage increase (e.g. 1.2) to the direct (bare) unit prices listed in the R. S. MEANS Cost Data Books. The Coefficient Schedule is provided as an attachment in this Solicitation.

C.5 R. S. MEANS COST DATA

C.5.1 The Government will not provide the R. S. MEANS Cost Data books for Contractor use. The cost books contain pricing information for the description of work to be accomplished and for the unit of measure specified.

C.5.2 Currently the R. S. MEANS Cost Data Books are updated and republished by R. S. MEANS Company annually. Pricing for all Task Orders under this contract will be based on the annual book publication and will not be subject to periodic changes published, electronically or otherwise, during the year. For the purposes of pricing work under this contract, the new editions will become effective upon issuance, but not later than 31 January of each year. Cost proposals are to be prepared in a data-base with an Excel transfer feature as the contract standard. All electronic files are to have Task Order number, initials of estimator and date. The Contractor must purchase their own licenses for the databases annually and provide formal training to their own staff.

C.5.3 The order of precedence for use of the R. S. MEANS books is as follows:

1. Facilities Construction Cost Data;
2. Repair and Remodeling Cost Data;

C.6 TOOLS AND EQUIPMENT

This contract covers multi-trade renovation, repair, rehabilitation, demolition, and minor construction projects. Below is a representative listing of tools and equipment that apply to the various trades. These items are indicative of, but not limited to, those that the Contractor is expected to provide, (to include usage and replacement as needed) as part of normal overhead cost covered in the Coefficient.

Airlines (drop line)	All hand tools
Awl	Axes
Brushes	Barricades, Safety
Bolt cutters	Barrier tape
Broom	Cable cutters
Cable pulling equipment (hand held)	Cable pullers/Hoist (hand held)
Can Opener	Caulking/Yarning Irons
Calking Gun	Chalk line
Chain Saw	Chisels
Clamps	Cleaning Equipment (hand held)
Compressor (sized as required to run tools)	Conduit
bender Crow Bars	Dividers
Drift Pins	Drill, pneumatic
Drill, pneumatic bits (up to 1 ¼ dia.)	Drill, Motors (hand held)
Drill, Bits	Drill, Hole Saw
Drill, Rotary hammer (up to 1 ¼ dia.)	Extension Cords
Files	Fish tapes
Gloves	Flash Lights

Floats (hand held)	Groover, Pipe (hand held)
Hacksaws	Hot Tap (hand held)
Hammers, hand	Hammers, chipping
Hammer, Jack	Industrial Vacuum and HEPA Vac
Jack, Hydraulic (12 tons or less)	Knives
Ladders (step to 12' and extension to 24')	Lead Pot and
Ladle Levels	Levels, Builders
Level, laser	Lighting, Temporary (up to 6 each)
Nailer, Pneumatic	Nail Sets
Picks	Planes (hand held)
Planes, Electric (hand held)	Pliers
Power Actuated Fastening Tools	Plumb Bob
Pot Hook	Personal Protective Equipment
Punches	Rake
Rasps (files)	Reinforcing steel, Shear and Bender (hand held)
Rivet Sets (Light, hand held)	Rollers-Flooring
Rules	Safety Equipment (Personal Protective Equipment) Sanders
(hand held)	Saws, Hand
Saws, Electric Hand, Circular	Saws, Electric Hand, Reciprocating
Saws, Backsaws and Miter Box	Saws, Power Miter Box
Saw Horses	Scaffolding, Portable, (8' table height)
Scrapers (hand held)	Screw Drivers
Screw Drivers, Electric	Scribers
Shears (hand held)	Shovels
Sledgehammers	Squares
Staplers, Air/Hand	Steel Framing Tools, Lightweight
Steel Framing Tampers (hand held, non-powered)	Tapelines
each) Temporary Lighting (400 square feet)	Tarpaulins (12' X 24", maximum of 5
Torch, hand	Tin Snips
Traffic delineator (cones or candle sticks)	Torch Igniters
each) Trowels (non-powered, hand held)	Trash Receptacles (35/gallon, 4
Traffic cones	Tool Boxes (personal)
Vacuum, wet/dry (5 gal)	Tubing Cutters (hand held, non-powered)
Vice	Vehicles (up to 1.5 ton)
Warning Tape (Up to 100')	Volt Meter, volt/ohm meter
Wire Strippers	Wheel Barrow (non-powered)
	Wrenches

C.7 IDENTIFICATION OF WORK AND TASK ORDER PREPARATION

C.7.1 As the need exists for performance under the terms of this contract, the KO or authorized representative will notify the Contractor of an existing requirement. The Government's Request for Task Order Work will address the following (as applicable):

1. Description of work
2. Sketches, specifications, and/or as-built drawings
3. Local environmental and usage permit requirements.
4. Special considerations
5. Meeting and submittal schedule requirements
6. Technical and contractual Points of Contact (POC)
7. The completion deadline/Period Of Performance (POP)

C.7.2 The Contractor shall respond to the Government's request for Task Order work within two working days upon receipt of the requirement. The Government will schedule a job site visit between the Contractor and the KO or authorized representative, and the Contractor shall participate in a meeting to further define the

scope.

C.7.3 After identification and determining the scope of work from the site visit, the KO will issue a Task Order RFP from which the Contractor shall prepare a proposal for accomplishment of the task. The Task Order RFP may include edited Unified Guide Specifications, additional station specific requirements, and any inspection criteria, environmental criteria, submittals, etc. that supplements or supersedes the requirements provided and referenced in the basic contract.

C.7.4 If the proposal is to be developed in R. S. MEANS, in accordance with the direction given in C.3, the Task Order RFP will direct the Contractor to provide a proposal based on R. S. MEANS or Competitive Quotes. The MEANS Cost Data books listed in paragraph C.5 shall serve as the basis for establishing the cost of work to be performed on a unit price basis. When the Request for Task Order Work includes direction to use competitive quotes, the Contractor shall use this method as opposed to Means Cost Data books.

C.7.5 The Contractor's proposal must be supported by necessary documentation to indicate that adequate planning has been done to accomplish the requirement, as identified in the Task Order RFP. Examples of documentation that might reasonably be expected would include: Contractor prepared drawings/sketches, catalog cuts, preliminary schedule indicating mobilization, submittals, material lead times, performance, phasing, etc. The Government may duplicate, use, and disclose in any manner and for any purpose, such documentation delivered under this contract.

C.7.6 Time allowed for preparation of Contractor's proposal would depend on the complexity and urgency of the Task Order. The normal time for submittal of the Contractor's proposal will be 10 working days. In emergency situations, the Government may require quicker response from the Contractor and the proposal due date will be indicated on the Request for Proposal or as otherwise agreed upon by the KO and the Contractor.

C.8 REVIEW OF CONTRACTOR PROPOSAL

Upon receipt of the Contractor's proposal, the Government will review the proposal for completeness and reasonableness. The KO will arrange with the Contractor to negotiate any elements in question. Upon completion of negotiations, the KO will issue a Task Order to the Contractor. The Task Order will include changes to the scope of work (if applicable) as agreed upon in negotiations and the negotiated completion date.

C.9 ISSUANCE OF TASK ORDER

C.9.1 A Task Order is a document (DD Form 1155) prepared by the KO that is issued to the Contractor. Task Orders will be issued as necessary and may be modified on Standard Form (SF) 30. Task Orders will be firm fixed-priced with specific completion dates and shall clearly define the specific services to be performed or the performance desired. In the event that the Government and Contractor fail to agree (in whole or in part), on the MEANS line item quantities, or non-pre-priced items, the Government may issue a Firm Fixed-Price Task Order with the Contractor proceeding with the work and seeking resolution, in accordance with the FAR 52.233-1 "DISPUTES", ALTERNATE I Clause in Section I.

C.9.2 Order of Conflicting Task Order Documents. In the event of any conflict in the written direction provided to the Contractor in the Firm Fixed-Price Task Order documents, precedence will be as follows:

1. Scope of Work
2. Drawings/Sketches
3. Specifications
4. Catalog cuts

C.9.3 The Contractor shall complete all Task Orders by the required completion date agreed to in the negotiations. In accordance with FAR 52.236-2 – Differing Site Conditions - where unforeseen conditions cause delays, the completion date may be extended only as negotiated and modified in the Task Order. Upon Task Order completion and Government acceptance of the work, the Contractor shall complete a final release and

submit it with a request for final payment.

C.9.4 Task Order Liquidated Damages

The Government may include liquidated damages on individual Task Orders as determined by the KO. If the Contractor fails to complete work within the time specified in the Task Order, the Contractor shall pay liquidated damages to the Government for each calendar day of delay until the work is completed.

C.9.5 It is the responsibility of the Contractor to notify the Government of any potential errors or omissions from drawings or details of work received, if found.

C.10 EXECUTION OF WORK

Prior to commencing work under a Task Order, unless otherwise determined unnecessary, Contractor shall schedule a pre-construction conference with the Government Representative. The purpose of the meeting is to develop a mutual understanding relative to the scope of work, safety program, local environmental requirements, quality control procedures, and construction schedule. The Contractor shall confer with the KO or the Government Representative and agree on sequence of procedure; means of access to premises and building; space for storage of materials and equipment; delivery of materials and use of approaches; use of corridors, stairways, elevators, means of communications, the location of partitions, and rest rooms for Contractor's employees. The work shall be executed in a manner and at such times that will cause the least practicable disturbance to the occupants of the buildings and normal activities of the station. Before starting any work, the sequence of operations and the methods of conducting the work shall have been approved by the KO.

C.11 MINIMUM INSURANCE REQUIREMENTS

The Contractor shall furnish a Certificate of Insurance, as evidence of the existence of the following insurance coverage amounts not less than the amount specified below in accordance with Contract Clause "FAR 52.228-5— Insurance—Work on a Government Installation". Other requirements of this deliverable are posted in Section F – Deliveries or Performance. This insurance must be maintained during the entire performance period.

C.11.1 Certificate of Insurance

The Certificate of Insurance shall provide for at least 30 calendar days written notice to the KO by the insurance company prior to cancellation or material change in policy coverage. Other requirements and information are contained in the aforementioned insurance clause.

C.11.2 Minimum Insurance Amounts

The Contractor shall procure and maintain, during the entire period of performance under this contract, the following minimum insurance coverage:

1. Comprehensive General Liability: \$500,000 per occurrence
2. Automobile Liability: \$200,000 per person, \$500,000 per occurrence for bodily injury, \$20,000 per occurrence for property damage
3. Workmen's Compensation: As required by Federal and State workers' compensation and occupational disease laws.
4. Employer's Liability Coverage: \$100,000, except in States where workers compensation may not be written by private carriers.
5. Others as required by law.

The above insurance coverage is to extend to Contractor personnel operating Government-owned equipment and vehicles.

For projects which require removal of asbestos containing materials, the Asbestos Contractor or Subcontractor, as the case may be, shall provide occurrence-based liability insurance with asbestos coverage in an amount not less than \$1,000,000 and shall name the Government as additional insured.

C.12 PERFORMANCE GUARANTEE OR BOND REQUIREMENTS

The Contractor shall provide a performance guarantee or payment and performance bonds for the duration of any and all active projects greater than \$150,000 or as required by the KO. Performance guarantee or payment and performance bonds are returned or relieved at the successful completion of any warranty period in force.

C.12.1 Performance Guarantee

If the Contractor chooses a bank letter of guarantee or other approved deposit, then the amount shall be no less than 10%. The following is an example of a letter of performance guarantee issued by a bank.

BANK LETTERHEAD

To: United States of America
U.S. Department of Navy
Naval Facilities Engineering Systems Command,
Europe Africa Central
Viale Porto, Box 51
Aeroporto Capodichino
80144, Napoli, Italia

Attention: Contracting Officer Date _____
Bank Letter of Performance Guarantee No. _____

This is a letter of performance guarantee. I/We, the undersigned, acting as the duly authorized representative(s) of the Bank, declare that the Bank hereby guarantees and is jointly and severally liable as guarantor with the Contractor named below to effect payment to the Contracting Office that issued the contract stated below, by check made payable to the "United States of America by the U.S. Department of the Navy, Naval Facilities Engineering Systems Command, Europe Africa Central," within five (5) calendar days after receipt of a simple written request by registered mail, return receipt, in amount up to sum of (Amount equal to ten (10%) percent of the contract amount in the currency stated in the contract), which represents the deposit required of the Contractor to guarantee fulfillment of his obligations for the satisfactory completion and timely performance of the work under Contract No. (insert contract number) for (insert description of services and location), in strict compliance with the terms, conditions and specifications of said contract entered into between the United States of America by the U.S. Department of Navy, Naval Facilities Engineering Systems Command, Europe Africa Central and the Contractor (insert name of Contractor) on (insert contract date), plus legal interest to be calculated from the date of receipt of the registered letter of request by the Contracting Officer to the date of actual payment, without any need for the Contracting Officer to take any legal action or obtain the prior consent of the Contractor, or for any other proof, action or decision by any other authority. The request by the Contracting Officer shall simply inform the Bank that the Contractor failed to comply with the terms and conditions of the contract, or did not fulfill his undertaking in whole or in part.

I/We agree and consent that said contract may be modified by change order or supplemental agreement affecting the amount or the period of performance of the contract without prior consent of the Bank and without affecting the validity of this guarantee; provided, however, that the amount of this guarantee shall remain unchanged.

This letter of performance guarantee will continue in effect without change in amount or terms until one year after the work has been finally accepted by the Government through its Contracting Officer's legal representative.

(BANK NAME & ADDRESS)

(CONTRACTOR NAME & ADDRESS)

Signed by: _____

Signed by: _____

(Typed name)

(Typed name)

(Title)

(Title)

(This Performance Guarantee shall be accompanied by a notarized document authenticating the bank agent's authority to sign the letter of performance guarantee for the bank company.)

C.13 PARTNERING MEETINGS

To most effectively accomplish the Job Order Contract as a whole, the Government requires the formation of a cohesive partnership with the Contractor and its key Subcontractors. This partnership is intended to establish a long-term collaborative commitment between the Government and Contractor personnel, referred to hereafter as partners, maximizing the effectiveness of each participant's resources. Key Government personnel, including the Base Public Works Department (PWD) and the designated Contracting Officer's Representative (COR) will be invited to participate in the partnering process. Key members of the JOC and Subcontractors teams, including senior management, must participate. The partnership will draw on the strength of each organization in an effort to achieve quality projects done right the first time, within budget, on schedule, and without any safety mishaps.

This contract will utilize NAVFAC's standardized Informal Partnering process, led by the Government's Construction Manager (CM) and the Contractor's Project Manager (PM). A partnering meeting will be held during or following the pre- performance conference, but prior to the start of physical work. In preparation for the partnering meeting, the contract awardee shall meet with the Contracting Officer and key Government personnel to establish the agenda for the Partnering Meeting.

Throughout the contract, the partners shall discuss their relationship and assess the need to conduct follow-on partnering sessions. The purpose of these discussions and sessions shall be to ensure that common objectives are met. Future sessions shall be held by mutual consent of the partners.

C. 14 WORK RESTRICTIONS

The specific Task Order Request for Proposal shall identify any project work restrictions, which differ from the restrictions described in the contract. The Contractor's work shall not interfere with normal Government business. In those cases where some interference is unavoidable, the Contractor shall minimize the impact and effects of the interference. The Contractor shall immediately notify the KO and key Government personnel of the delay and obtain guidance from the KO on how to proceed. The Contractor shall provide advance access of all of its work schedules to the Government. The Contractor shall notify the KO of any difficulty in scheduling work due to Government controls.

C.14.1 Contractor Use of Premises

C.14.1.1 Activity Regulations

Ensure that Contractor personnel employed on this contract become familiar with and obey CLDJ or Somali regulations depending on the site under consideration. Contractor personnel must remain situationally aware of the sensitive security environment on the installation and act appropriately; complying with all lawful directions from law enforcement and security personnel, and adjusting plans on short notice as required. Wear hard hats and other required PPE as applicable in designated areas and in compliance with EM-385-1-1. Do not enter any restricted areas unless required to do so and until cleared for such entry. The Contractor's equipment shall be conspicuously marked for identification.

C.14.1.2 Working Hours

The Government's regular working hours are between the hours of 0730 and 1600 five days per week, Sunday through Thursday, except observed Federal holidays. Exceptions to the regular hours of operation will be stated in individual Task Orders. Further, should the Contractor require exceptions to the above hours, the Contractor shall seek approval from the KO 15 days in advance. Work hours not specifically authorized in this basic contract or in a Task Order require approval from the KO. The Contractor shall submit a request to the KO ten calendar days in advance, or as defined in an individual Task Order, to allow arrangement for a Government inspection of the work in progress.

C.14.1.3 Observed Federal Holidays

The Government observes the following holidays: New Year's Day, Martin Luther King Junior's Birthday, President's Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day.

C.14.1.4 Work Outside Regular Hours

Work, not specifically identified in the Task Order RFP, which is outside regular working hours as identified in C.14.1.2 requires KO approval. Submit requests 10 calendar days prior to such work to allow arrangements to be made by the Government for inspecting the work in progress.

C.14.1.5 Occupied Buildings

The Task Order RFP may require the Contractor to work in or around existing building(s), which are occupied. Do not enter the buildings without prior approval of the KO. When required by the specific Task Order RFP, the existing buildings and their contents shall be kept secure at all times. Provide temporary closures as required to maintain security as directed by the KO or COR. Provide dust covers or protective enclosures to protect existing work that remains and Government material located in existing facilities during the construction period.

C.14.1.6 Jobsite Lay Down Area

Materials and equipment may not be stored at the jobsite lay down area after work hours unless approved in advance by the KO or COR. Office space is the responsibility of the Contractor and will be contained within the Contractor's lay down containment area. Exceptions will be specified in individual Task orders if required.

C.14.2 Moving Furniture

Furniture and portable office equipment in the immediate area will be moved by the Contractor as required to perform the work, protect the furniture, and will be replaced to original position. If the work required by the Task Order will not allow furniture and portable office equipment to be replaced to its original position, new locations will be designated by the COR for replacement by the Contractor. If the situation does not allow for the moving of office equipment, furniture, etc., the Contractor is required to cover/protect items identified. Leave attached equipment in place, and protect it against damage, or temporarily disconnect, relocate, protect, and reinstall it at the completion of the work. Definitions of items not to be moved and attached equipment shall be communicated prior to project start. Costs associated as a result of the Government requirement shall be identified as a separate, direct cost to the project.

C.14.3 Utility Cutovers and Interruptions

Requests to disrupt service to any roads and/or utility services shall be submitted to the COR in writing at a minimum of 14 calendar days prior to the desired date of interruption to allow notification of affected tenants and customers. Note, for work involving IT systems, a minimum of 35 calendar days prior to the desired date of interruption will be required. For IT systems work, there is also a need to provide an alternate date for approval. At a minimum, include the location of the outage, utilities being affected, duration of outage and any necessary sketches. The Contractor may have to physically mark the boundaries of the location. Utility cutovers and interruptions after normal working hours or on Saturdays, Sundays, and Government holidays shall conform to procedures required in the paragraph "Work Outside Regular Hours", unless specifically stated otherwise in the Task Order RFP. Interruption to water, sanitary sewer, storm sewer, telephone service, electric service, air conditioning, heating, fire alarm, and compressed air, shall be considered utility cutovers. If the service interruption is due to emergency breakdown, the Contractor shall notify COR as soon as practicable. Contractor shall attend the pre-outage coordination meeting(s).

C.14.3.1 Operation of Station Utilities

The Contractor shall not operate or disturb the setting of control devices in the station utilities system, including water, sewer, electrical, steam services, cooling systems (centralized or otherwise), ancillary systems supporting provision of utilities and telecommunications equipment (e.g. servers). The Government will operate the control devices as required for normal conduct of the work. The Contractor shall notify the COR giving reasonable advance notice when such operation is required.

C.14.3.2 Hazardous Areas

Do not enter into work areas where personnel are using protective equipment such as respirator and masks, areas marked for High Voltage Electricity, or marked boundary areas without prior approval from the COR or Government authority designated at Task Order level.

C.14.4 Security Requirements

Any special or extraordinary security requirements, which are unique to a specific project (for example, badging requirements for restricted areas), will be included in the requirements of the Task Order RFP as applicable.

C.14.5 Emergency Point Of Contact Information

At the Task Order level, furnish Contractor point of contact information to the KO and COR. Include addresses and telephone numbers for use in the event of an emergency at which the representative may be reached 24 hours daily. The Contractor shall notify the KO and COR in writing of the telephone number within three calendar days after award of the Task Order and immediately thereafter in the event of change.

C.14.6 Installation Access Badges

The contractor shall be responsible for furnishing and requiring that each person employed in connection with this contract or any subcontract hereunder, be provided with a valid/current Contractor Employee base Access Pass. Installation access badges will be furnished without reimbursement to the Contractor and his employees. Report immediately lost or stolen badges to the COR and local base security office. Costs associated with identification badges will be included in the Contractor's proposed coefficients. All identification badges must be returned or accounted for to the applicable Pass and Identification Office upon expiration of the badge or contract, or termination of the employees, whichever comes first. The Contractor shall assume 14 days as the processing time for Installation Access badge approvals.

- a. In order to obtain an installation access badge, the base access "package" for Djiboutian and Somali citizens, depending on the site involved, must include the following:
 - (1) Base access request form filled out with all required information (make sure to provide a valid labor contract number and valid labor contract duration);
 - (2) Scanned copy of the individual's ID (make sure the ID is valid);
 - (3) Background investigation form signed by the individual's supervisor and the individual – scanned copy;
 - (4) In case it is a base access extension request, please provide the initial approval number in the Comments column.
 - (5) In case an individual that has already been approved for base access changes employer, the current employer will submit a base access request in order to inform CLDJ or Somali designated authorities, depending on the site involved, about the transfer and to extend employee's access. If the employee is already in possession of a base access badge, the base access extension start date will be the expiration date on the current badge – if the initial approval's number is available, please provide. Please mention that the individual was previously approved in the body of the e-mail – his name will be ran through base access database in order to find/verify initial approval number.
- b. In order to obtain an installation access badge, the base access "package" for Non Djiboutian or Non Somali citizens must include the following:
 - (1) Base access request form filled out with all required information;
 - (2) Background investigation form signed by the individual's supervisor and the individual – scanned copy;
 - (3) Scanned copy of the individual's passport and Visa/Work Permit/Residence Permit.
 - (4) In case an individual that has already been approved for base access changes employer, the current employer will submit a base access request in order to inform CLDJ or Somali designated authorities, depending on the site involved, about the transfer and to extend employee's access. If the employee is already in possession of a base access badge, the base access extension start date will be the expiration date on the current badge – if the initial

approval's number is available, please provide. Please mention that the individual was previously approved in the body of the e-mail – his name will be ran through base access database in order to find/verify initial approval number.

C.14.7 Temporary Base Access Requests for Personnel (1-3 days)

CLDJ requirements in order to obtain temporary base access under escort for individuals and vehicles:

- a. Fill out temporary access under escort form (this form will be used only for people who have Djiboutian or Somali citizenship, depending on the site being accessed.
- b. Fill out vehicle base access form.
- c. Provide scanned copies of the drivers' ID card. (Please make sure the ID card is valid.)

ACCESS FOR VEHICLES AND DEVICES

Camp Lemonnier, Djibouti or Somalia, depending on the site being accessed, requirements for vehicles and devices:

- a. Fill out vehicle base access form;
- b. All laptop and tablet computing devices must be registered with CLDJ Security or Somali Security.

The request has to be submitted 14 days in advance.

Vehicles and equipment admitted to CLDJ or Somalia, and other U.S. military installations will be subject to security screenings and shall meet standards established by the Station Safety Department. Additionally, the Contractor shall expect to lose one-to-two crew hours per day while working at CLDJ or at Somalia due to vehicle security inspections. Such delays will be at no additional cost to the Government and will be considered an excusable delay to the contractor.

C.14.5 BASE ACCESS CANCELLATION

If base access for an individual or vehicle is no longer required, due to termination or release of any employee, termination or completion of contract, or any other reason, a base access cancellation form (table for withdrawal of access request) must be filled out and sent to CLDJ or Somalia to cancel the base access. The badge must be returned to the security office where it was initially distributed.

C.15 SCHEDULE

The Contractor shall submit for acceptance a construction schedule in the form of a progress chart. The format of the progress chart will use MS-Project. The MS-Project schedule will include logical sequencing with predecessor and successor relationships identified. Incremental dates shall not be "manually" entered except where reliance by the Contractor is on 3rd parties for material deliveries or project initiation. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. The schedule shall be adequate for the Contractor to efficiently manage the project and for the Government to efficiently manage the QA and scheduling interfaces. Include construction phasing and any work restrictions (such as occupied spaces, special hours, potential work disruptions). Schedules shall contain dates for completion of each task including material procurement, and construction activities. The JOC Task Order will identify if detailed NETWORK ANALYSIS SCHEDULES applies to that Task Order. When a Network Analysis Schedule is required by a specific Task Order, the cost for this scheduling shall be identified as a line item in the Task Order proposal. When a NAS is required, it shall be provided pursuant to the clause entitled "FAR 52.236-15, Schedules for Construction Contracts" of the Contracts Clauses, except as modified in this section.

C.16 HEALTH AND SAFETY

C.16.1 Publications

In addition to references and standards given in this section, the Contractor is responsible for understanding and complying with all CLDJ or Somalia safety standards, depending on the site under consideration, that govern work in the areas under any Task Order awarded. The publications listed below form a part of this contract to the extent referenced. For the life of the contract, the publication versions that are current at the time of contract award will be used. The publications are referred to within the text by the basic designation only.

AMERICAN NATIONAL STANDARDS INSTITUTE (ANSI)

ANSI Z359.1, Safety Requirements for Personal Fall Arrest System, Subsystems and Components
ANSI A10.32, Fall Protection Systems for Construction and Demolition Operations
ANSI A10.34, Protection of the Public on or Adjacent to Construction Sites
ANSI Z9.2, Fundamentals Governing the Design and Operation of Local Exhaust Systems
ANSI Z88.2, Respiratory Protection
ANSI Z358.1, Emergency Eyewash and Shower Equipment

ASME INTERNATIONAL (ASME)

ASME B30.22, Articulating Boom Cranes
ASME B30.3, Construction Tower Cranes
ASME B30.5, Mobile and Locomotive Cranes
ASME B30.8, Floating Cranes and Floating Derricks

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)

NFPA 241, Safeguarding Construction, Alteration, and Demolition Operations
NFPA 51B, Fire Prevention During Welding, Cutting, and Other Hot Work
NFPA 70, National Electrical Code
NFPA 70E, Electrical Safety in the Workplace

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1, Safety -- Safety and Health Requirements

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

29 CFR 1910, Occupational Safety and Health Standards
29 CFR 1910.146, Permit-required Confined Spaces
29 CFR 1915, Occupational Safety and Health Standards for Shipyard Employment
29 CFR 1926, Safety and Health Regulations for Construction

C.16.2 Definitions

1. Certified Construction Health & Safety Technician (CHST). An individual who is currently certified as a CHST by the Board of Certified Safety Professionals.
2. Certified Industrial Hygienist (CIH). An individual who is currently certified as a CIH by the American Board of Industrial Hygiene.
3. Certified Safety Professional (CSP). An individual who is currently certified as a CSP by the Board of Certified Safety Professionals.
4. Certified Safety Trained Supervisor (STS). An individual who is currently certified as an STS by the Board of Certified Safety Professionals.
5. Competent Person. A person who is capable of identifying or predicting hazards or hazardous conditions and has the authority to take prompt corrective measures to eliminate them. The competent person assists writing the Activity Hazard Analysis (AHA) and signs it if the phase of work requires a particular competent person (e.g., fall protection, excavation/trenching, scaffolding).
6. Competent Person for Fall Protection. A person designated in writing by the employer to be responsible for the immediate supervision, implementation and monitoring of the fall protection program, who through training, knowledge and experience in fall protection and rescue systems and equipment, is capable of identifying, evaluating, and addressing existing and potential fall hazards and, who has the authority to take prompt corrective measures with regard to such hazards.

7. **Qualified Person.** One who, by possession of a recognized degree, certificate, or professional standing and has extensive knowledge, training, and experience and has successfully demonstrated his/her ability to solve or resolve problems related to the subject matter, work, or the project.
8. **High Visibility Accident.** Any mishap, which may generate publicity and/or high visibility.
9. **Medical Treatment.** Treatment administered by a physician or by registered professional personnel under the standing orders of a physician. Medical treatment does not include first aid treatment even though provided by a physician or registered personnel.
10. **Operating Envelope.** The area surrounding of any crane. Inside this "envelope" is the crane, the operator, riggers and crane walkers, rigging gear between the hook and the load, the load and the crane's supporting structure (ground, rail, etc.).

C.16.3 Weight Handling Equipment (WHE) Accident

The Contractor shall report all Weight Handling Equipment Accidents to the ROICC, COR, and KO. A WHE accident occurs when any one or more of the six elements in the operating envelope fails to perform correctly during operation, including operation during maintenance or testing resulting in personnel injury or death; material or equipment damage; dropped load; derailment; two-blocking; overload; or collision, including unplanned contact between the load, crane, or other objects. A dropped load, derailment, two-blocking, overload and collision are considered accidents even though no material damage or injury occur. A component failure (e.g., motor burnout, gear tooth failure, bearing failure) is not considered an accident solely due to material or equipment damage unless the component failure results in damage to other components (e.g., dropped boom, dropped load, roll over).

C.16.4 Contractor Safety Self-Evaluation Checklist

The KO will provide a "Contractor Safety Self-Evaluation checklist" to the Contractor. In return, the Contractor shall complete the checklist. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. A score of 90 or greater is required. Failure to submit the completed safety self-evaluation checklist or achieve a score of at least 90 will result in retainage of up to 10 percent of the voucher.

C.16.5 Regulatory Requirements

In addition to the detailed requirements included in this contract, work performed shall comply with USACE EM 385-1-1, Safety and Health Requirements Manual, and the laws, ordinances, criteria, rules and regulations as specified in the contract and subsequent Task Orders. Submit matters of interpretation of standards to the appropriate administrative agency for resolution before starting work. Where the requirements of this specification, applicable laws, criteria, ordinances, regulations, and referenced documents vary, the most stringent requirements shall apply.

C.16.6 Site Safety and Health Officer (SSHO) Qualifications & Duties

SSHO shall perform safety and occupational health management, surveillance, inspections, and safety enforcement for the Contractor. The assignment of the SSHO does not relieve the Contractor from the regulatory requirements governing safety responsibility. A SSHO or designated representative as identified in the Accident Prevention Plan/Activity Hazard Analysis (APP/AHA) and as deemed appropriate/equivalent to SSHO shall be on-site at all times when work is being performed. The SSHO shall meet the following requirements:

1. A minimum of 5 years safety work on similar projects.
2. 30-hour OSHA construction safety class or equivalent within the last 5 years.
3. An average of at least 24 hours of formal safety and health coursework every four years.
4. Competent person training as needed.
5. Successfully completed the Environmental Compliance Awareness Training (ECATT) Program.
6. In addition to duties required in EM 385-1-1, perform the following:
 - a. Conduct daily safety and health inspections and maintain a written log, which includes
 - b. area/operation inspected, date of inspection, identified hazards, recommended corrective actions, estimated and actual dates of corrections. Attach safety inspection logs to the daily production report.
 - c. Attend pre-construction conference, pre-work meetings including preparatory inspection meeting,

- and periodic progress meetings
- d. Implement and enforce accepted APP s and AHAs.
- e. Maintain a safety and health deficiency tracking system that monitors outstanding deficiencies until resolution. A list of unresolved safety and health deficiencies shall be posted on the safety bulletin board.
- f. Ensure Subcontractor compliance with safety and health requirements.
- g. Failure to actively apply an acceptable safety program will result in a direction to replace the SSHO and a project work stoppage that will remain in effect pending approval of a suitable replacement.

C.16.7 Task Order SSHO

A Task Order SSHO is identified in the AHA and as deemed appropriate/equivalent to SSHO shall be on-site at all times when work is being performed. The site superintendent meeting the qualifications described below may perform the duties of Task Order SSHO. The Task Order SSHO shall meet the following requirements:

1. Journeyman Level experience in work being performed.
2. 30-hour OSHA construction safety class or equivalent within the last 5 years.
3. Competent person training as needed.
4. Successfully completed the Environmental Compliance Awareness Training (ECATT) Program.
5. In addition to duties required in EM 385-1-1, perform the following:
 - a. Conduct daily safety and health inspections and maintain a written log, which includes area/operation inspected, date of inspection, identified hazards, recommended corrective actions, estimated and actual dates of corrections. Attach safety inspection logs to the daily production report.
 - b. Implement and enforce accepted APP s and AHAs.
 - c. Maintain a safety and health deficiency tracking system that monitors outstanding deficiencies until resolution. A list of unresolved safety and health deficiencies shall be posted on the safety bulletin board.
 - d. Ensure Subcontractor compliance with safety and health requirements. Failure to actively apply an acceptable safety program will result in a direction to replace the Task Order SSHO and a project work stoppage that will remain in effect pending approval of a suitable replacement.

C.16.7.1 Certified Safety Professional (CSP) and/or Certified Industrial Hygienist (CIH)

Provide a Certified Safety Professional (CSP) and/or Certified Industrial Hygienist (CIH) at the work site to perform safety and occupational health management, surveillance, inspections, and safety enforcement for the Contractor if required by specific Task Orders. When specifically required by a Task Order RFP, the costs for these CSP/CIH personnel shall be identified as a line item on the cost proposal. When required, the CSP and/or CIH shall be the safety and occupational health "competent person" as defined by USACE EM 385-1-1, Safety and Health Requirements Manual. The CSP and/or CIH shall have no other duties than safety and occupational health management, inspections, and/or industrial hygiene.

C.16.8 Competent Person for Confined Space Entry

When confined spaces are identified in the Task Order Request For Proposal, the Contractor must provide a competent person to manage the confined space entry. This individual must meet the definition and requirements of Section 34 and Appendix Q of EM 385-1-1.

Should the work involve marine operations that handle combustible or hazardous materials, this person shall be a NFPA certified marine chemist. This is a unique Task Order Requirement that shall be priced separately and is not to be included in the Contractor's Coefficient.

C.16.9 Crane Operators

Crane operators shall meet the requirements in USACE EM 385-1-1, Safety and Health Requirements Manual Section 16 and Appendix G. In addition, for mobile cranes with Original Equipment Manufacturer (OEM) rated capacities of 2,000 pounds or greater, crane operators shall be designated as qualified by a source that qualifies crane operators (i.e., union, a Government agency, or an organization that tests and qualifies crane operators).

Proof of Qualifications for Crane Operator(s) shall be provided. Other requirements of this deliverable are posted in Section F – Deliveries or Performance.

C.16.10 Accident Prevention Plan (APP)

C.16.10.1 General Accident Prevent Plan

The Contractor is required to submit a General Accident Prevention Plan. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. A project specific plan will be required for individual Task Orders.

The Contractor shall use a qualified person to prepare the written site-specific General APP. Prepare the APP in accordance with the format and requirements of USACE EM 385-1-1, Safety and Health Requirements Manual, and as supplemented herein. Cover all paragraph and subparagraph elements in USACE EM 385-1-1, Safety and Health Requirements Manual, Appendix A, "Minimum Basic Outline for Accident Prevention Plan". Specific requirements for some of the APP elements are:

- The Prime Contractor is the "controlling authority" for all work site safety and health of the Subcontractors.
- The Prime Contractor is responsible for informing its Subcontractors of the contract safety provisions and the penalties for noncompliance.
- The Prime Contractor is responsible for coordinating the work to prevent one craft from interfering with or creating hazardous working conditions for other crafts, and inspecting Subcontractor operations to ensure that accident prevention responsibilities are being carried out.
- Unless otherwise specifically requested, the APP shall be signed by the person and firm (senior person) preparing the APP. The on-site superintendent, the designated site safety and health officer and any designated CSP and/or CIH are qualified for this role.
- Submit the APP to the KO twenty calendar days prior to the date of the preconstruction conference for acceptance. Work cannot proceed without an accepted APP.
- Once accepted by the KO, the APP and attachments will be enforced as part of the contract. Disregarding the provisions of this contract or the accepted APP will be cause for stopping of work, until the matter has been satisfactorily resolved.
- Once work begins, any changes to the accepted APP shall be made with the knowledge and concurrence of the KO, project superintendent, SSHO and quality control manager. Should any hazard become evident, stop work in the area, secure the area, and develop a plan to remove the hazard. Notify the KO within 24 hours of discovery. Eliminate/remove the hazard. In the interim, all necessary action shall be taken to restore and maintain safe working conditions in order to safeguard onsite personnel, visitors, the public (as defined by American National Standards Institution/American Society of Safety Engineers (ANSI/ASSE) A10.34,) and the environment.
- Copies of the accepted APP will be maintained by the Contractor at the job site and by the KO.
- The APP shall be continuously reviewed and amended, as necessary, throughout the life of the contract. Unusual or high-hazard activities not identified in the original APP shall be incorporated in the APP as they are discovered.

C.16.10.2 EM 385-1-1 Contents

In addition to the minimum requirements for an Accident Prevention Plan outlined in Appendix A of USACE EM 385-1-1, Safety and Health Requirements Manual, the following is required to be included in the APP:

1. Names and qualifications: Resumes including education, training, experience and certifications of all site safety and health personnel designated to perform work on this project to include the designated site safety and health officer and other competent and qualified personnel to be used such as CSPs, CIHs, STSs, and CHSTs. The duties of each position shall be specified. Submittal requirements are posted in Section F – Deliveries or Performance.
2. Qualifications of Competent and of Qualified Persons: Competent or Qualified person(s) qualifying skills statement(s) shall be kept at the project site available for Government Designated Authority review. The competent person(s) and qualified person(s) shall be designated in writing. The qualifying factors for

either designation shall be submitted for any of the following major construction activities prior to its occurrence: excavation; scaffolding; fall protection; hazardous energy; confined space; health hazard recognition, evaluation and control of chemical, physical, and biological agents; personal protective equipment and clothing to include selection, use and maintenance. Submittal requirements are posted in Section F – Deliveries or Performance.

3. **Confined Space Entry Plan:** Develop a confined space entry plan in accordance with USACE EM 385-1-1, *Safety and Health Requirements Manual*, applicable OSHA standards 29 CFR 1910, *Occupational Safety and Health Standards*, 29 CFR 1915, *Occupational Safety and Health Standards for Shipyard Employment*, and 29 CFR 1926, *Occupational Safety and Health Standards for Construction*, and any other federal, state and local regulatory requirements identified in this contract. Identify the qualified person's name and qualifications, training, and experience. Delineate the qualified person's authority to direct work stoppage in the event of hazardous conditions. Include procedure for rescue by Contractor personnel and the coordination with emergency responders. (If there is no confined space work, include a statement that no confined space work exists and none will be created.) Submittal requirements are posted in Section F – Deliveries or Performance
4. **Crane Critical Lift Plan:** Prepare and sign weight handling critical lift plans for lifts over 75 percent of the capacity of the crane or hoist (or lifts over 50 percent of the capacity of a barge mounted mobile crane's hoists) at any radius of lift; lifts involving more than one crane or hoist; lifts of personnel; and lifts involving non-routine rigging or operation, sensitive equipment, or unusual safety risks. Submittal requirements are posted in Section F – Deliveries or Performance. The plan shall include the requirements of USACE EM 385-1-1, *Safety and Health Requirements Manual*, paragraph 16.H. and the following:
 - a. For lifts of personnel, the plan shall demonstrate compliance with the requirements of 29 CFR 1926.550(g).
 - b. For barge mounted mobile cranes, barge stability calculations identifying barge list and trim based on anticipated loading; and load charts based on calculated list and trim. The amount of list and trim shall be within the crane manufacturer's requirements.

C.16.11 Task Order Specific Accident Prevent Plan

For each Task Order, prepare an APP in accordance with USACE EM 385-1-1, *Safety and Health Requirements Manual*, Appendix A, "Minimum Basic Outline for Accident Prevention Plan" and as modified herein. The Task Order APP shall be job-specific and shall address any unusual or unique aspects of the project or activity for which it is written, and which are not addressed in the approved General APP. The APP shall interface with the Contractor's overall safety and health program.

C.16.12 ACTIVITY HAZARD ANALYSIS (AHA)

The Activity Hazard Analysis (AHA) format shall be in accordance with USACE EM 385-1-1, *Safety and Health Requirements Manual*, figure 1-2. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. Subsequent AHAs shall be prepared as amendments to the APP. The AHA should be used during daily inspections to ensure the implementation and effectiveness of the activity's safety and health controls. The appropriate/equivalent Task Order SSHO is identified in the AHA.

C.16.13 Emergency Medical Treatment

Contractors will arrange for their own emergency medical treatment. The Government has no responsibility to provide emergency medical treatment. When on-site emergency response is required to be provided by the Government, the Contractor may be required to reimburse the Government.

C.16.14 Accident Notification and Reports

1. For recordable injuries and illnesses, and property damage accidents resulting in at least \$25,000 in damages, the Prime Contractor shall conduct an accident investigation to establish the root cause(s) of the accident, complete the report in the Contractor Incident Reporting System (CIRS) on line. A temporary log-in ID and password will be given by the KO as required and the report must be completed within five (5) days of the accident. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. The Contracting Officer will provide copies of any required or special forms and access to the system as required.
2. For any weight handling equipment accident (including rigging gear accidents), the Prime Contractor shall conduct an accident investigation to establish the root cause(s) of the accident, complete the WHE Accident Report (Crane and Rigging Gear) form and provide the report. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. Crane operations shall not proceed until the cause is determined and corrective actions have been implemented to the satisfaction of the contracting officer. The Contracting Officer will provide a blank copy of the accident report form.
3. Notify the Contracting Officer as soon as practical, but not later than four hours, after any accident meeting the definition of Recordable Injuries or Illnesses or High Visibility Accidents, any property damage, or any weight handling equipment accident. Include Contractor name; contract title; type of contract; name of activity, installation or location where accident occurred; date and time of accident; names of personnel injured; extent of property damage, if any; extent of injury, if known, and brief description of accident (e.g., type of construction equipment used, PPE used). Preserve the conditions and evidence on the accident site until the Government investigation team arrives and a Government investigation is conducted.

C.16.15 Hot Work

Prior to performing "Hot Work" (e.g., welding, cutting) or operating other flame-producing/ spark-producing devices, request a written permit from the Fire Division. CONTRACTORS ARE REQUIRED TO MEET ALL CRITERIA BEFORE A PERMIT IS ISSUED. Criteria to obtain a hot work permit are defined in AWS Z49.1, American Welding Society (AWS), (2021) Safety in Welding and Cutting and Allied Processes. It is mandatory to have a designated FIRE WATCH for any "Hot Work". The Fire Watch shall be trained in accordance with National Fire Protection Association (NFPA) 51B and remain on site for a minimum of 1 hour or as required after completion of the task or as specified on the hot work permit.

C.16.16 Hazardous Material Use

Any material brought also on site CLDJ or Somalia needs to go through the CHRIMP program. The personnel at the CHRIMP office will direct the request to the appropriate departments for approval before the material is brought on site. Each hazardous material must receive approval from the ACO or other designated authority prior to being brought onto the job site or prior to any other use in connection with this contract. Allow a minimum of 10 working days for processing of the request for use of a hazardous material. Hazardous material will be screened for the following prohibited constituents:

- ☐ Asbestos
- ☐ Acrylonitrile
- ☐ Arsenic
- ☐ Benzene
- ☐ Beryllium
- ☐ Cadmium
- ☐ Chrome VI (hexavalent chromium)
- ☐ Formaldehyde
- ☐ Isocyanates
- ☐ Mercury
- ☐ Methylene chloride
- ☐ Lead
- ☐ Polychlorinated biphenyls (PCBs)
- ☐ Vinyl chloride
- ☐ Carcinogen's in amounts greater than 0.1%
- ☐ Chemical substances or mixtures subject to an order under 15 U.S. § 2606.
- ☐ Toxic water pollutants defined in 33 U.S.C. § 502 (13) and regulated under 33 U.S.C. § 1317.

- ☐ Hazardous air pollutants regulated under 42 U.S.C. § 112.
- ☐ Extremely hazardous substances described in 42 U.S.C. § 11002(a)(2).

If flammable liquids (flashpoint 200 F or above) are to be stored on site, provide a flammable liquid storage cabinet in compliance with specifications of NFPA 30, Chapter 14. The Contractor may be required to register hazardous material storage units (e.g. provide a Point of Contact) and allow the temporary application of additional provided signs or forms if required by local instructions.

The installation is not responsible for disposing of contractor's materials/waste. Any unused/excess materials/waste must be removed and disposed of offsite by the contractor.

Notwithstanding any other hazardous material used in this contract, radioactive materials or instruments capable of producing ionizing/non-ionizing radiation (with the exception of radioactive material and devices used in accordance with USACE EM 385-1-1, *Safety and Health Requirements Manual*, such as nuclear density meters for compaction testing and laboratory equipment with radioactive sources) as well as materials which contain asbestos, mercury, PCBs, diisocyanates, or lead-based paint are prohibited. The Contracting Officer, upon written request by the Contractor, may consider exceptions to the use of any of the above excluded materials.

The Task Order Request for Proposal should identify materials such as PCB, lead paint, and friable and non-friable asbestos. If the Contractor disturbs material not previously identified in the Task Order RFP, which may be hazardous to human health during construction operations, the Contractor must stop that portion of work and notify the Contracting Officer immediately. Within 14 calendar days, the Government will determine if the material is hazardous. If material is not hazardous or poses no danger, the Government will direct the Contractor to proceed without change. If the material is hazardous and handling of the material is necessary to accomplish the work, the Government will make a determination regarding cleanup of hazardous material and notify the Contractor of impact to the project via Task Order modification pursuant to FAR 52.243-4, Changes, or FAR 52.236-2, Differing Site Conditions.

C.16.17 Pre-outage Coordination Meeting

Prior to beginning work on the utility system requiring shut down, attend a pre-outage coordination meeting with the Contracting Officer or authorized Government representative to review the scope of work and the lock-out/tag-out procedures for worker protection. No work will be performed on energized electrical circuits unless the Contractor can show that the work can be performed safely and no other methods are available to accomplish the task.

C.16.18 Fall Hazard Protection and Prevention Program

Establish a fall protection and prevention program, for the protection of all employees exposed to fall hazards. Include company policy; identify responsibilities, education and training requirements, fall hazard identification, prevention and control measures, inspection, storage, care and maintenance of fall protection equipment and rescue and evacuation procedures.

C.16.19 Fall Protection for Roofing Work

Implement all protection controls based on the type of roof being constructed and work being performed. Evaluate the roof area to be accessed for its structural integrity including weight-bearing capabilities for the projected loading.

1. A safety monitoring system is not adequate fall protection for low sloped roofs and is not authorized.
2. Work on steep-sloped roofs, including residential or housing type construction, requires a personal fall arrest system, guardrails with toe-boards, and safety nets.

C.16.20 Weight Handling Equipment

1. Provide a Certificate of Compliance for each crane and Multi-Purpose Machine, Material Handling Equipment (Forklifts), and construction equipment when used as cranes to lift suspended loads entering an activity under this contract (see Contracting Officer for a blank certificate). The certificate shall state that the WHE and rigging gear meet applicable OSHA regulations (with the Contractor citing which OSHA regulations are applicable, e.g., WHE used in construction, demolition, or maintenance shall comply with 29 CFR 1926, *Occupational Safety and Health Standards for Construction*, and USACE EM 385-1-1,

Safety and Health Requirements Manual, section 16. The Certificate of Compliance shall state that the WHE operator(s) is qualified and trained in the operation of the WHE to be used. Also certify that all of its WHE operators working on the DOW activity have been trained in the proper use of all safety devices (e.g., anti-two block devices). Post these certifications on the crane.

2. Notify the Contracting Officer 15 calendar days in advance of any WHE entering the activity so that necessary quality assurance spot checks can be coordinated. The contractor's operator shall remain with the crane during the spot check.
3. Comply with the manufacturer's specifications and limitations for erection and operation of cranes and hoists used in support of the work. Perform erection under the supervision of a designated person (as defined in ASME B30.5). Perform all testing in accordance with the manufacturer's recommended procedures.
4. Comply with ASME B30.5 for mobile and locomotive cranes, ASME B30.22 for articulating boom cranes, ASME B30.3 for construction tower cranes, and ASME B30.8 for floating cranes and floating derricks.
5. Under no circumstance make a lift at or above 90% of the WHE's rated capacity in any configuration.
6. When operating in the vicinity of overhead transmission lines, operators and riggers shall be alert to this special hazard and shall follow the requirements of USACE EM 385-1-1, *Safety and Health Requirements Manual*, sections 16 and 11 and ASME B30.5 or ASME B30.22 as applicable.
7. Use cribbing when performing lifts on outriggers.
8. Position the WHE hook/block directly over the load. Side loading of the crane is prohibited.
9. Certification records which include the date of inspection, signature of the person performing the inspection, and the serial number or other identifier of the crane that was inspected shall be available for review by Contracting Officer personnel.
10. Written reports listing the load test procedures used along with any repairs or alterations performed on the crane shall be available for review by Contracting Officer personnel.
11. Certify that all WHE operators have been trained in proper use of all safety devices (e.g. anti-two block devices).
12. Take steps to ensure that wind speed does not contribute to loss of control of the load during lifting operations. Prior to conducting lifting operations, set a maximum wind speed at which a crane can be safely operated based on the equipment being used, the load being lifted, experience of operators and riggers, and hazards on the work site. Include this maximum wind speed determination in the activity hazard analysis plan for that operation.

C.16.21 Utility Locations and Verification Prior to Excavation

Obtain appropriate digging permit from Base personnel through the Administrative Contracting Officer's designated Technical Representative which must be approved prior to digging. All underground utilities in the work area must be positively identified by a private utility locating service in addition to any station locating service and coordinated with the station utility department. Maintain all markings during utility investigation throughout the contract.

Physically verify underground utility locations by hand digging using wood or fiberglass handled tools when any adjacent construction work is expected to come within three feet of the underground system. Use hand digging within 0.61 m (2 feet) of a known utility. If construction is parallel to an existing utility, expose the utility by hand digging every 30.5 m (100 feet) if parallel within 1.5 m (5 feet) of the excavation. Excavation work is defined as digging, saw-cutting, or core drilling of all vertical and horizontal surfaces to include building

interiors.

C.16.22 Utilities Within Concrete Slabs

Utilities located within concrete slabs are extremely difficult to identify due to the reinforcing steel used in the construction of these structures. Whenever work involves concrete chipping, saw cutting, or core drilling, the existing utility location must be coordinated with station utility departments in addition to a private locating service. Outages to isolate utility systems shall be used in circumstances where utilities are unable to be positively identified. The use of historical drawings does not alleviate the Contractor from meeting this requirement.

C.16.23 Conduct of Electrical Work

Follow electrical safety criteria specified in USACE EM 385-1-1, *Safety and Health Requirements Manual*, and NFPA 70E, *Standard for Electrical Safety in the Workplace*, during the conduct of all work.

OSHA Approved Certification – The equipment installation and its component parts shall be in compliance with the applicable OSHA regulations in accordance with CFR Title 29, Chapter XVII, Part 1910 and installed in accordance with NEC/NFPA requirements. Approval shall be as specified under the “Approval” and “Acceptance” criteria in the OSHA regulations Subpart “O”, Machinery and Machine Guarding paragraph 1910.212 and Subpart “S” Electrical, paragraph 1910.303 and paragraph 1910.399. After equipment delivery and installation, and prior to testing, the Contractor shall provide an OSHA Certification Report. Failure to provide this certification report will delay acceptance of the equipment, and could result in rejection for failure to comply with the terms of the contract. This report documents the results of all tests performed, provides an assessment of the equipment performance for compliance with the contract requirements, and forms a basis for recommending a safety certification. The report, test and evaluation shall be a composite of those inspection requirements specified in the contract. The report shall be prepared in an orderly manner to clearly and accurately set forth the collected data and conclusion resulting from these inspection requirements, opinions and subjective conclusions shall be clearly identified. The report shall include, but is not limited to, the following:

1. List of all tests performed and by whom witnessed.
2. List of data used for evaluation.
3. Tabulation of all discrepancies related to specification performance requirements.
4. Description of limitations revealed by data utilized.
5. Actions taken to mitigate each discrepancy and limitation.
6. Recommendations for subsequent actions.
7. Summary conclusions.

The contractor shall provide equipment with a manufacturer certification indicating that it meets the definition of 'acceptable' in accordance with OSHA CFR 1910.399. Therefore, only equipment found to be in compliance with the provisions of the National Electrical Code is acceptable, especially in terms of occupational safety.

C.16.24 Work in Confined Spaces

In addition to the requirements of Section 34 of USACE EM 385-1-1, *Safety and Health Requirements Manual*, OSHA 29 CFR 1910.146, *Permit Requirements for Confined Space*, and OSHA 29 CFR 1926.21(b)(6), *Safety Training and Education (Confined Space)*, comply with the following paragraphs. Any potential for a hazard in the confined space requires a permit system to be used.

1. Confined Space Signage: Provide permanent signs integral to or securely attached to access covers for permit-required confined spaces provided by this contract. Signs wording: "DANGER-- PERMIT-REQUIRED CONFINED SPACE - DO NOT ENTER -" in bold letters a minimum of 25 mm (one inch) in height and constructed to be clearly legible with all paint removed. The signal word "DANGER" shall be red and readable from 1.52 m (5 feet).
2. Entry Procedures: Prohibit entry into a confined space by personnel for any purpose, including hot work, until the qualified person has conducted appropriate tests to ensure and document that the confined or enclosed space is safe for the work intended and all potential hazards are controlled or eliminated. (See Section 34 of USACE EM 385-1-1, *Safety and Health Requirements Manual*, for entry procedures.) Review all hazards pertaining to the space with each employee during AHA

process.

3. Forced air ventilation is required for all confined space entry operations. Maintain minimum air exchange requirements to ensure exposure to any hazardous atmosphere is kept below its' action level.
4. Sewer wet wells require continuous atmosphere monitoring with audible alarm for toxic gas detection.

C.17 QUALITY MANAGEMENT

The Quality Management program is a concerted effort of the Contractor and Government personnel to ensure that quality standards are met under contract terms. Quality Management consists of two parts: Quality Control (QC), established and directed by the Contractor, and Quality Assurance (QA), the Government's program to maximize project quality elements. The Contractor's QC organization for each Task Order shall include a QC Manager and any QC Specialists that are specified in the Task Order RFP. Costs for the QC Manager shall be included in the Contractor's Coefficient. Costs for the QC Specialists required by a specific Task Order shall be attributed to that Task Order and are not covered by the Coefficient.

The Contractor shall establish and maintain an inspection system in accordance with the FAR Clause 52.246-12, INSPECTION OF CONSTRUCTION, to ensure that the work performed conforms to the contract requirements. Submit a General JOC Construction Quality Control plan for Government review and acceptance. Submittal requirements for this deliverable are posted in Section F – Deliveries or Performance. Submit a Task Order Specific Quality Control Plan for every Task Order. Construction work on a Task Order will not be allowed until the Task Order Specific QC Plan is accepted by a designated Government authority.

The Contractor shall maintain a file of all scheduled and performed QC inspections, inspection results, and dates and details of corrective and preventive actions. The file shall be the property of the Government and made available during the Government's regular working hours. Submittal requirements for this deliverable are posted in Section F

– Deliveries or Performance. The general JOC Construction QC plan shall be submitted in a 3-ring binder with one electronic copy that covers the overarching QC procedures that are instituted for all Task Orders under this contract.

QC Manager Uses the Three Phases of Control process for construction QC:

1. Preparatory Phase: Review all applicable documents for compliance with all applicable laws, codes, regulations, and the requirements of the contract, including contract drawings and specifications. Determine requirements for testing and certification. Review submittal approvals for materials, equipment, shop drawings, and applicable methods of construction and installation. Include all Preparatory Phase items in the QC Report.
2. Initial Phase: Observe and inspect the initial portion of the work performed under a definable feature of work to establish the quality of the workmanship, resolve conflicts in construction, ensure that testing is done and certified as required, and to check all work procedures to ascertain the work is in conformance with required safety requirements. Record and report nonconforming work and work not of acceptable quality and requiring correction or rework. Include all Initial Phase items, along with initial phase checklist and, in the QC Report.
3. Follow-Up Phase: Occurs at the completion of each Definable Feature Of Work (DFOW). Ensure the work is in compliance with contract requirements, quality of workmanship for all work is maintained, and all work performed meets safety requirements. Include all Follow-Up Phase items, including date, in the QC Report.

The QC Manager must possess a current certificate showing successful completion of the NAVFAC Contractor Quality Management (CQM) Training.

Contractor Daily Quality Control Report: Other requirements of this deliverable are posted in Section F – Deliveries or Performance. Contractor Quality Control Reports are to be prepared, signed and dated by the Project QC Manager and shall contain the following information:

1. Date of report, report number, contract number
2. Identify by Task Order number and project title where Preparatory Phase work was performed today.
3. Identify by Task Order number and project title where Initial Phase work was performed today.
4. Results of the Follow-up Phase inspections held today.
5. Include a “Remarks” section in this report which will contain pertinent information including direction received, quality control problem areas, deviations from the QC plan, construction deficiencies encountered, QC meetings held, and corrective action taken by the Contractor.
6. Contractor Quality Control Report certification, signature and date.

C.18 TEMPORARY FACILITIES AND CONTROLS

C.18.1 Contractor Work Site

Limit use of the premises for work and for storage of material and equipment associated with the contract. Unless otherwise specified or separately agreed to, Government-owned material handling equipment, transportation equipment or general tools will not be available for Contractor’s use. Clean work area daily and after completion of the work, removing all loose debris and disposing of all non-permanent materials IAW the Contractor’s Waste Management Plan. Contractor is to ensure that the Waste Management Plan is in alignment with the Waste Management Plan of the facility in which work is being performed.

C.18.2 Temporary Facilities

The Contractor may provide his own temporary office facilities upon advance approval from the Administrative Contracting Officer. The Contractor shall provide and maintain suitable sanitary facilities within the construction limits of the contract and dispose of sanitary waste in accordance with the applicable laws, and local regulations.

C.18.3 Contractor-Furnished Equipment

Equipment is subject to the inspection and approval of the Administrative Contracting Officer, prior to and during the life of the contract. All equipment and vehicles shall display readily visible Contractor identification markings. Upon request, the Contractor shall relocate stored Contractor-furnished equipment which may interfere with operations of the Government or with others on-site.

C.18.4 Contractor-furnished Material

Protect and secure Contractor-furnished material stored at each applicable project worksite. All replacement units, parts, components, and materials to be used in the maintenance, repair and alteration of facilities and equipment shall be new and compatible with the existing equipment on which it is to be used, and shall comply with applicable Government, commercial, or industrial standards such as Underwriters Laboratories, Inc., and National Electrical Manufacturers Association.

C.18.5 TEMPORARY UTILITIES (FOR TEMPORARY FACILITIES)

1. The Government will provide water and power in reasonable quantities.
2. All labor, material, and equipment necessary to affect temporary utility tie-ins, including transformers if necessary, shall be at the expense of the Contractor and under the surveillance of the Administrative Contracting Officer.
3. The Contractor shall be responsible for any damages to Government, private or public facilities and property that may result from the installation and removal of these temporary utility tie-ins. Corrections and repairs shall be made at the Contractor’s expense.
4. The actual location and installation of the temporary tie-in, together with any interruptions of utilities systems, shall be identified and approved by the ROICC prior to execution. Notify the COR and Station Utilities 15 calendar days prior to any tie-ins.
5. Permanent utility systems, when indicated, will be available for tie-in.
6. Telephone and Data Service: Make arrangements with local telephone company and other

- pertinent base communication departments.
7. Maintain utility services to existing facilities surrounding the site at all times during construction.
 8. Contractor shall install and certify back flow preventers on all connections to the potable water supply system.

C.18.6 Government Installation Operation Effect On Contractor Operations

The project Task Order will identify any known Government Installation operations that may affect the Contractor's work.

C.18.7 Rerouting of Vehicular Traffic

If during the performance of work, it becomes necessary to modify vehicular traffic patterns at any locations, notify the ROICC and provide a Traffic Control Plan detailing the proposed controls to traffic movement for approval. The provided Traffic Control Plan shall be provided by the Contractor to the ROICC a minimum of 15 days prior to its needed use. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. The plan shall be in accordance with local governing regulations. Make all notifications and obtain any permits required for modification to traffic movements outside the Government Installation's jurisdiction. Provide cones, signs, barricades, lights, or other traffic control devices and personnel required to control traffic. Do not use foil-backed material for temporary pavement marking because of its potential to conduct electricity during accidents involving downed power lines.

C.18.8 Storage Size and Location

The site available for storage shall be as indicated in the project Task Order. If no storage area is identified in the Task Order, the Contractor shall assume that there is not storage space available.

C.18.9 Temporary Sanitary Facilities

Provide adequate sanitary conveniences of a type approved for the use of persons employed on the work, properly secluded from public observation, and maintained in such a manner as required and approved by the Administrative Contracting Officer. Maintain these conveniences at all times. Upon completion of the work, remove the conveniences from the premises, leaving the premises clean. Dispose of sewage through connection to a municipal, district, or Government Installation sanitary sewage system. Where such systems are not available, use chemical toilets or comparably effective units, and periodically empty wastes into a municipal, district, or station sanitary sewage system, or remove waste to a commercial facility. Include provisions for pest control and elimination of odors.

C.18.10 Signs

Place warning signs at the construction area perimeter designating the presence of construction hazards requiring unauthorized persons to keep out. Signs must be placed on all sides of the construction area. All points of entry shall have signs designating the construction site as a hard-hat area. Signs must be professional in appearance, with legible print that is visible by applicable traffic (pedestrian and/or vehicular). All points of entry shall have signs designating the construction site as a hard-hat area (designating the construction site and list PPE required as per APP).

C.19 ENVIRONMENTAL PROTECTION

C.19.1 Provide and maintain, during the life of the JOC contract, environmental protection as defined in this Section and individual Task Orders. Plan for and provide environmental protective measures to control pollution that develops during normal construction practice. Plan for and provide environmental protective measures required to correct conditions that develop during the construction of permanent or temporary environmental features associated with the project. Comply with Federal, state, local regulations and DOW, Navy, Installation policies pertaining to the environment, including but not limited to water, land, air, and noise pollution

C.19.2 The Request for Proposal for individual Task Order will identify when work shall be conducted on properties that are designated as historic places or areas of sensitive archeological or protected nature. The Contractor shall understand and comply with all applicable protection standards for such sites.

C.19.3 ENVIRONMENTAL PROTECTION PLAN

The Contractor is required to submit a General Environmental Protection Plan for the JOC contract. Amendments to augment the Environmental Protection Plan to adequately address environmental issues applicable to individual Task Orders may also be required.

C.19.3.1 Environmental Protection Plan Meeting

Fourteen (14) calendar days after the Partnering meeting, schedule to meet with the Procuring Contracting Officer to discuss the Environmental Protection Plan and to develop a mutual understanding relative to the details of environmental protection and awareness, including protection of natural and cultural resources, required reports, and other measures to be taken.

C.19.3.2 Environmental Protection Plan

Submit an original and five copies of the proposed Environmental Protection Plan to the Contracting Officer for review and approval. The subsequent plans listed in this section (storm water management, wastewater management, etc.) fall under the purview of the Environmental Protection Plan. Other requirements of this deliverable are posted in Section F – Deliveries or Performance.

1. Appoint an Environmental Manager for the contract. This is not a key manager under the terms of the Contract, but is still an integral part of meeting the environmental requirements. This person may have other job duties as assigned, provided the environmental requirements of the contract are met.

The Environmental Manager will be directly responsible for coordinating Contractor compliance with the applicable sections of the DoN Environmental and Natural Resources Program Manual OPNVAINST 5090.1, and station requirements. The Environmental Manager will ensure implementation of the Environmental Protection Plan; ensure that all environmental permits are obtained, maintained, and closed out; ensure compliance with Hazardous Materials (storage, handling, and reporting) requirements; coordinate any remediation of regulated substances (lead, asbestos, PCB transformers); and maintain required environmental records and documentation, including training, waste handling, and permitting records.

2. Storm Water Management Plan: Address provisions for storm water management to include, at a minimum, the following:
 - a. Identify potential sources of pollution which may reasonably be expected to affect the quality of storm water discharge from the site.
 - b. Select applicable Best Management Practices (BMPs) from EPA 832-R-92-005.
 - c. Describe and ensure implementation of BMPs which will be used to reduce the pollutants in storm water discharge at the construction site.
 - d. Consider off-site water quality impacts such as excessive sedimentation, streambank erosion, discharges to ground water contribution or recharge zones, violations of water quality standards, and spills and discharges of priority pollutants.
 - e. Address the following:
 1. Stabilization and sediment trapping
 2. Timing and stabilization of sediment trapping measures
 3. Cut and fill slopes
 4. Stabilization of temporary conveyance channel and outlets
 5. Storm drain inlet protection
 6. Underground utility construction
 7. Construction access routes
 8. Removal of temporary BMPs
 9. Dewatering construction sites
 10. Control of pollutants other than sediment on construction sites
 11. Maintenance and inspection of BMPs
 - f. Submit a storm drain discharge approval request to obtain approval before discharging uncontaminated water into storm drain. This must go through PW EV for approval. The plan needs to address how the contractor will determine if the discharge water is uncontaminated.

3. Storm Water Pollution Prevention Plan (SWPPP): The Contractor shall not disturb 1 acre or more of land during performance of work on any Task Order, unless specifically noted otherwise. If an acre or more of land is planned to be disturbed, a SWPPP may be required. Requirements for this plan will be identified in the applicable Task Order RFP.
4. Wastewater Management Plan: Address provisions for wastewater management to include, at a minimum, sediment control, oil/water separation, wastewater anticipated to be generated for example sterilizing piping, tool rinsing, surface cleaning and preparation, anticipated contamination levels, required testing and an estimate of daily amount of water requiring discharge and/or disposal. An example of performance requiring a Wastewater Management Plan would be usage for concrete saw cutting water.
5. Air Pollution Control Plan: Address measures to control airborne pollution such as, but not limited to fugitive dust, fugitive emissions, volatile organic compounds and, other air contaminants as required by the applicable sections of the DoN Environmental and Natural Resources Program Manual OPNVAINST 5090.1, and station requirements. If not already completed perform an AHERA survey prior to doing any renovation or demolition work. Provide a copy of the Asbestos Hazard Emergency Response Act (AHERA) survey to the Base Environmental Office (BEO). The Contractor shall perform all asbestos work IAW all applicable DoW and DoN Environmental and Safety regulations. The Contractor is responsible to follow the station asbestos waste requirements. The Contractor will need to provide an Asbestos Work Plan IAW EM385-1-1 06.B.05 *Lead and Asbestos Hazard Control Activities*. Any Asbestos Containing Material (ACM) being removed requires the Contractor to provide a copy of the Contractors Asbestos Contractors License as per the Unified Facilities Guide Specification SECTION 02 82 16.00 20 (Engineering Controls of Asbestos Containing Materials.), paragraph 1.5.4 (Contractor's License)
6. Spill Prevention and Spill Response Plan: Address job specific measures to prevent oil and hazardous substances from entering the ground, drainage areas, or local bodies of water. Also include specific procedures for preventing and responding to spills of oil and hazardous substances (OHS). Include a list of items in the spill kit, which are required at each OHS handling or storage site.
7. Salvageable/Reusable Material and Recyclable Waste Plan: Address the salvage and reuse of construction materials and the recycling of wastes from the job site. Measures to be addressed are, at a minimum, the following:
 - a. Identify anticipated materials and waste for salvage, reuse, and recycling.
 - b. Describe actions to be taken to promote material reuse or resale and/or recycling.
 - c. Address on-site accumulation measures such as quantities of accumulation containers, labeling, and location of accumulation area at the job site.
 - d. Describe any testing and other procedures required prior to removing reusable materials and recyclable wastes from Government property.
 - e. Include the name, physical address, telephone number of the hauler and the destination. Provide a copy of the National, Regional or local permit (cover) or license for recycling, as appropriate (this may be waived when not required by the regulating authorities). Please provide this information as an Appendix to the EPP for ease of reference.
 - f. Include a discussion of the solid waste tracking procedures as specified in this Section. As part of this plan, the contractor needs to provide the amount of material recycled and disposed of offsite. These records must be provided to the EV office quarterly. If the project duration is less than three months, these records must be provided to the EV office at the end of the project.
 - g. For item(s) that are designated as dangerous waste, include a statement that describes the on-site accumulation procedures, transportation, and disposal facilities. Unless there is a variation from the information provided in the dangerous waste management plan, a statement referring to that plan is acceptable.

8. **Solid Waste Management Plan:** All waste management practices shall be performed in accordance with the approved Environmental Protection Plan.
- a. Address the control, management, and disposal of solid waste as defined herein. Include an approximate time-line and quantity of solid waste requiring disposal. This includes management of rubbish, CD debris, liquid waste, landfill controlled waste, garbage, or other discarded items, as applicable. Include a copy of the National, Regional, or local disposal permit or license for the solid waste disposal facility that includes: the type of facility, name, physical address, phone numbers, issuing authority and approval signature, permitted entity and period of issuance for all wastes. Submit a copy of the local hauling permit (if waste transported by franchised hauler) if required.
 - b. For landfill controlled waste, the Contractor shall provide the name, physical address, and telephone number of the permitted facility to receive the waste material, estimated quantity of waste to be delivered, estimated schedule dates of shipment, and the name and address of transporter, as applicable.
 - c. For disposal of liquid wastes at a wastewater treatment plant, the Contractor shall provide the facility name, physical address, telephone number, and type of waste the facility accepts.
 - d. **Solid Waste Management Reporting.**
Complete a serialized Solid Waste Tracking Sheet (SWTS) for each off-site shipment of solid waste (except sanitary sewage), recyclable materials and non-dangerous recyclable waste. Do not use SWTS for asbestos, PCBs or dangerous waste. As part of the reporting requirements, the contractor needs to provide the amount of material recycled and disposed of offsite. These records must be provided to the EV office quarterly. If the project duration is less than three months, these records must be provided to the EV office at the end of the project.
 - e. **Waste Determination Documentation**
Submit Waste Determination Documentation for each undesignated waste type. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. Documentation shall consist of the installation-specific waste form and related information prepared by the Contractor and submitted to the Government for the purpose of Government designation of waste. Examples of related documentation include MSDS, sampling and analysis plans, analytical information, and description of waste or process that generate waste.

Waste shall not be transported off-site prior to designation by the Government. No waste shall be transported off site without completed Waste Determination Documentation. Follow all instructions provided on completed Waste Determination Documentation forms.
 - f. **Control of Waste Without Documented Waste Determination**
Collect wastes for which the Waste Determination Documentation has not been completed, label "pending analysis. Accumulate and manage in the same manner as Dangerous Waste per the DoW OEBGD for CLDJ or Somalia until the waste determination documentation is completed.

C.19.4 Construction and Demolition Waste Management

Contractor is required to implement a waste management program for recycling non-hazardous construction and demolition waste material for each Task Order. It is intended to reduce the amount of waste requiring landfill disposal and to promote more efficient use of construction materials. Any additional project specific requirements shall be included in the Task Order. Government policy is to apply sound environmental principles in construction and use of facilities. As part of the implementation of that policy the Contractor shall: (1) practice efficient waste management when sizing, cutting, and installing products and materials and (2) use all reasonable means to divert construction and demolition waste from landfills and incinerators and to facilitate their recycling or reuse.

The Contractor shall take a pro-active, responsible role in the management of construction and demolition waste and require all Subcontractors, vendors, and suppliers to participate in the effort. Construction and demolition waste includes products of demolition or removal, excess or unusable construction materials, packaging materials

for construction products, and other materials generated during the construction process but not incorporated into the work. In the management of waste, consideration shall be given to the availability of viable markets, the condition of the material, the ability to provide the material in suitable condition and in a quantity acceptable to available markets, and time constraints imposed by internal project completion mandates. The Contractor shall be responsible for implementation of any special programs involving rebates or similar incentives related to recycling of waste. Revenues or other savings obtained for salvage, or recycling shall accrue to the Contractor. Firms and facilities used for recycling, reuse, and disposal shall be appropriately permitted for the intended use to the extent required by federal, state, and local regulations.

C.19.4.1 Task Order Waste Management Plan

A Task Order specific waste management plan shall be submitted. Other requirements of this deliverable are posted in Section F – Deliveries or Performance. The plan shall include the following:

1. Name of individuals on the Contractor's staff responsible for waste prevention and management.
2. Actions that will be taken to reduce solid waste generation.
3. Description of the specific approaches to be used in recycling/reuse of the various materials generated, including the areas and equipment to be used for processing, sorting, and temporary storage of wastes.
4. Characterization, including estimated types and quantities, of the waste to be generated.
5. Name of landfill and/or incinerator to be used and the estimated costs for use, assuming that there would be no salvage or recycling on the project.
6. Identification of local and regional reuse programs, including non-profit organizations such as schools, local housing agencies, and organizations that accept used materials such as materials exchange networks and Habitat for Humanity.
7. List of specific waste materials that will be salvaged for resale, salvaged and reused, or recycled. Recycling facilities that will be used shall be identified.
8. Identification of materials that cannot be recycled/reused with an explanation or justification.
9. Anticipated net cost savings determined by subtracting Contractor program management costs and the cost of disposal from the revenue generated by sale of the materials and the incineration and/or landfill cost avoidance.

C.19.4.2 Records shall be maintained to document the quantity of waste generated; the quantity of waste diverted through sale, reuse, or recycling; and the quantity of waste disposed by landfill or incineration. The records shall be made available to the Administrative Contracting Officer during construction, and a copy of the records shall be delivered to the Administrative Contracting Officer upon completion of the construction Task Order. As part of this plan, the contractor needs to provide the amount of material recycled and disposed of offsite. These records must be provided to the EV office quarterly. If the project duration is less than three months, these records must be provided to the EV office at the end of the project.

C.19.4.3 The necessary containers, bins and storage areas to facilitate effective waste management shall be provided and shall be clearly and appropriately identified. Recyclable materials shall be handled to prevent contamination of materials from incompatible products and materials.

C.19.4.4 Except as otherwise specified, disposal shall be in accordance with the following:

1. Reuse: First consideration shall be given to salvage for reuse since little or no re-processing is necessary for this method, and less pollution is created when items are reused in their original form. Sale or donation of waste suitable for reuse shall be considered. Salvaged materials, other than those specified in other sections to be salvaged and reinstalled, shall not be used in any Task Order.
2. Recycle: Waste materials that are not suitable for reuse but having value as being recyclable, shall be made available for recycling whenever economically feasible.
3. Waste: Materials with no practical use or economic benefit shall be disposed at a landfill or incinerator.

C.19.5 Air Pollution Control

Work under a specific Task Order may require the Contractor to submit notices to the Installation

Environmental Program Director. Submit notices via the Contracting Officer prior to the start of work.

C.19.6 Releases/Spills of Oil and Hazardous Substances

The installation has a Spill Prevention Response Plan (SPRP). The Contractor shall be familiar with the installation spill plan for the installation and shall comply in an expeditious and procedurally appropriate manner. The contractor also needs to follow these procedures when developing a site-specific plan. Immediately after making contact with appropriate local authorities for on-base spills and National, Regional and local emergency response authorities, the Contractor shall notify the Administrative Contracting Officer and the Installation Environmental Program Director.

C.19.7 Refrigerant Maintenance Control

Work under a specific Task Order may require the Contractor to perform maintenance or retrofit existing Heating, Ventilation or Air Conditioning (HVAC) systems. Submit a completed Environmental Refrigerant Work Checklist to the Contracting Officer upon completion of the HVAC maintenance work.

C.19.8 Environmental Compliance Assessment Training and Tracking (ECATTS)

The QC Manager is responsible for environmental compliance on projects unless an Environmental Manager is named. The QC Manager (and alternative QC Manager) or Environmental Manager shall complete ECATTS training prior to starting respective portions of on-site work under this contract.

If personnel changes occur for any of these positions after starting work, replacement personnel shall complete ECATTS training within 14 days of assignment to the project. Submit an ECATTS certificate of completion for personnel who have completed the required "Environmental Compliance Assessment Training and Tracking System (ECATTS)" training. This training is web-based and can be accessed from any computer with Internet access using the following instructions. Register for NAVFAC Environmental Compliance Training and Tracking System, by logging on to <https://environmentaltraining.ecatts.com/>. Obtain the password for registration from the Contracting Officer or Contracting Officer's Representative. This training has been structured to allow contractor personnel to receive credit under this contract and also to carry forward credit to future contracts. Contractors shall ensure that the QC Manager (and alternate QC Manager) or Environmental Manager review their training plans for new modules or updated training requirements prior to beginning work. Some training modules are tailored for specific national regulatory requirements; therefore, Contractors working in multiple area will be required to re-take modules tailored to the country where the contract work is being performed.

ECATTS is available for use by all contractor and subcontractor personnel associated with this project. These other personnel are encouraged (but not required) to take the training and may do so at their discretion.

C.20 ENVIRONMENTAL MANAGEMENT SYSTEM (EMS)

The Contractor shall perform work under this contract consistent with the following EMS goals and policy.

C.20.1 Goals:

1. Reduce purchase and use of toxic and hazardous materials;
2. Expand purchase of green products and services; increase recycling;
3. Reduce energy and water use;
4. Increase use of alternative fuels and renewable energy;
5. Integrate green building concepts in major renovations and new construction;
6. Prevent pollution at the source; and
7. Continual improvement.

C.20.2 Policy:

1. Protect public health and the environment by being an environmentally responsible member of the community;
2. Preserve our natural, historic and cultural resources;
3. Conserve natural resources by reducing what we discard, reusing items, and recycling materials,

- which includes purchasing products made from recycled materials;
4. Integrate sound environmental practices into all our operations and business decisions; Integrate environmental protection requirements and pollution prevention initiatives into the early planning, design and procurement of facilities, equipment and material, as well as the planning and implementation of military training activities;
 5. Prevent or minimize pollution at its source as we seek out ways to eliminate or further minimize use of hazardous materials and generation of hazardous waste;
 6. Maintain a sound partnership with regulatory agencies to sustain our compliance with existing and new environmental laws and regulations;
 7. Enhance our program as we develop and implement an Environmental Management System; and
 8. Adhere to this policy, remind one another to do so, and ensure that our entire community knows this is our policy by our actions as well as our words.

C.20.3 The Contractor shall maintain monitoring and measurement information to address the EMS goals and policy and provide the EMS Goals and Policy Measurement Information to the KO when requested. In the event an EMS nonconformance or environmental noncompliance associated with the contracted services, tasks, or actions occurs, the Contractor shall take corrective and/or preventative actions. In the case of a noncompliance, the Contractor shall assume legal and financial liability for the noncompliance and take corrective action immediately to remedy the noncompliance. In the case of a nonconformance, the Contractor shall respond and take corrective action based on the time schedule established by the KO. The Contractor shall ensure that its employees are aware of their roles and responsibilities under the EMS and how these EMS roles and responsibilities affect work performed under the contract.

C.21 FACILITY ELECTRONIC OPERATION AND MAINTENANCE SUPPORT INFORMATION (eOMSI)

The Contractor shall provide electronic Operation and Maintenance Support Information (eOMSI) on new construction projects greater than or equal to \$1 million, and for major renovation projects greater than or equal to 50 percent of the Plant Replacement Value of the existing facility.

- C.21.1 eOMSI is divided into two major types of information:
- a. The eOMSI Manual, which is organized around two traditional Operation and Maintenance Support Information (OMSI) headings: (1) Product and Drawing Information; and (2) Facility Information. The Manual is provided by the Contractor and includes product information, a facility description with photos, and a list of primary facility systems.
 - b. The eOMSI Facility Data Workbook, which is available for download on the Whole Building Design Guide under UFGS 01 78 24.00 20 in the UFGS Title column. The Facility Data Workbook is a Microsoft Excel file containing required facility information populated by the Contractor.
- C.21.2 eOMSI Meetings. The Contractor shall facilitate an eOMSI Manual and Facility Data Workbook Coordination Meeting prior to the submission of the eOMSI Progress Submittal. The purpose of this meeting is to reach a mutual understanding of the scope of work concerning the contract requirements for eOMSI and coordinate the efforts necessary by both the Government and Contractor to ensure an accurate collection, preparation and timely Government review of eOMSI.
- C.21.3 eOMSI Submittals.
- a. eOMSI, Prefinal Submittal: Contractor shall submit the 100 percent submittal of the eOMSI Prefinal submittal to the Contracting Officer for approval within 60 calendar days of the Beneficial Occupancy Date (BOD). This submittal must provide a complete, working document that can be used to operate and maintain the facility. Any portion of the submittal that is incomplete or inaccurate requires the entire submittal to be returned for correction. The eOMSI Prefinal Submittal must

include eOMSI Manual Files (bookmarked pdf) and eOMSI Facility Data Workbook (excel).

b. eOMSI, Final Submittal: Contractor shall submit completed eOMSI Manual Files (bookmarked pdf) and eOMSI Facility Data Workbook (excel). The final submittal is due at BOD. Any discrepancies discovered during the Government's review of the Prefinal eOMSI submittal, including the Field Verification, must be corrected prior to the Final eOMSI submission.

C.21.4 eOMSI Manual.

- C.21.4.1 Product and Drawing Information: Provide an organized record of the facility products, materials, equipment, and testing submittals, and the minimum information necessary to operate the facility. Provide Product and Drawing Information for the systems of the 'final constructed facility'.
- a. Facility Information – Roofing: Provide the total area of each type of roof surface and system. Provide the name of the roofing product and system; manufacturer's, supplier's, and installer's names, addresses, and phone numbers; manufacturer's product name, identifying number and color. For each type of roof, provide a recommended inspection, maintenance and repair schedule that details checkpoints, frequencies, and prohibited practices. List roof structural load limits.
 - b. Facility Information – HVAC Filters: Provide a table that lists the quantity, type, size, and location of each HVAC filter, manufacturer's product name, and identifying number.
 - c. Facility Information – Plumbing Fixtures: Provide a table that lists by room number, the number and type of plumbing and bathroom plumbing fixtures.
 - d. Facility Information – Lighting Fixtures: Provide a table that lists by room number (including hallways and common spaces), the type of lighting fixture, ballast, number of lighting fixtures, type of lamps and number of lamps, and the manufacturer's product name and the identifying number. The table must include a facility summary of the total number of fixtures of each type and number of lamps of each type.
 - e. Facility Information – Equipment Listing: Provide a table that lists the major equipment shown on the design equipment schedules. Show the item descriptions, location, model numbers; and the names, addresses and telephone numbers of the manufacturers, suppliers, contractors, and subcontractors.
 - f. Facility Information – System Flow Diagrams: Provide a flow diagram indicating system liquid, air or gas flow during normal operations. Integrate the system components into the diagram. A compilation of non-integrated, flow diagrams for the individual system components are not acceptable.
 - g. Facility Information – Valve List: Provide a list of all valves associated with the system. Show valve type, identification number, function, location and normal operating position.
 - h. Facility Information – Riser Diagrams: Provide riser diagrams and settings of equipment.

C.21.5 eOMSI Facility Data Workbook

- C.21.5.1 Contractor shall download the eOMSI Facility Data Workbook at the following location: <http://www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/forms-graphics-tables>. Complete the KTR Facility Data File tab based on the selection of Mastersystems, Systems, and Subsystems installed. The following tabs are included in the eOMSI Facility Data File Workbook and serve the purpose stated:
- a. Instructions Tab: Instructions for completing Model & Facility Data Matrix Tab and KTR Facility Data File Tab. If a discrepancy exists between what is required in this section and the Workbook, the instructions within the Workbook take

precedence.

b. Model & Facility Data Matrix Tab: The Matrix lists Required Facility Asset Fields for each SYSTEM and SUBSYSTEM. The Designer of Record selects SYSTEMS and SUBSYSTEMS that are within the project scope, which the Contractor needs to include and populate in KTR Facility Data File tab. The “Required Facility Asset Field Position Numbers,” one through thirty-five, are pre-populated, and are not editable.

c. Required Facility Asset Fields Tab: Defines the 35 Required Facility Asset Field Position Numbers used in Model and Facility Data Matrix and KTR Facility Data File tabs.

d. KTR Sample Facility Data File Tab: Sample KTR eOMSI facility data file. This tab provides an example of the mandatory fields of equipment installed by the Contractor, and populated in the KTR eOMSI Facility Data File Tab, along with their descriptions.

e. KTR Facility Data File Tab: Required eOMSI facility data file deliverable provided to the Government. Provide a separate and unique new row for each facility component or piece of equipment installed. Coordinate with the Government’s Contracting Officer’s Representative and NAVFAC PW FMD for specific facility component naming convention.

C.21.5.2 KTR – an abbreviation for “Contractor”.

C.21.6 Field Verification: Contractor shall field verify that at least 5 SUBSYSTEMS under each of the MASTER SYSTEMS are accurate, for a total of 25 SUBSYSTEMS. For each of these items, verify that the required facility asset field, as defined in the “Model & Facility Data Matrix” tab, contains the specified data and it is accurate (ie, item description, manufacturer, model no., serial no.). 100 percent accuracy of eOMSI information is required for successful field verification. If data discrepancies are discovered amongst the 25 SUBSYSTEMS verified, resubmit an updated eOMSI FDW.

APPENDIX I:

BASE ACCESS AND SECURITY

WORK HOURS, ACCESS AND PASSES

Base Access procedures are stated in OPNAVINST 5530.14. The Contractor shall submit Base Access requests through PWD. The access requirements are subject to change at any time. The Contractor shall comply with the most recent DoW, Navy, and base access requirements as well as any supplemental documents related to base access requirements, as applicable. Any additional costs for changed requirements will not be reimbursed to the Contractor.

All Contractor employees, including subcontractors, and subcontractors' employees, suppliers, and suppliers' employees shall be required to comply with the Installation Security Requirements regarding personnel, vehicle, and equipment security passes and access the jobsite. All persons requesting base access under this contract are subject to security and background checks by both the Djiboutian or Somali security forces, depending on the site under consideration, and United States Governments. Nothing in the contract shall be construed in any way to limit the authority of the Commanding Officer to prescribe new, or to enforce existing security regulations governing the admission or exclusion of persons and the conduct of persons while aboard the station, including but not limited to, the rights of search of all persons or vehicles aboard the station.

The current requirements are below:

Coordinate with the Contracting Officer’s Representative (COR) for specific security and access requirements.

- a. Access to Buildings/Occupied Buildings: The Contractor may work in or around existing occupied buildings. The Contractor is responsible, via the Contracting Officer’s Representative, to obtain access to

building and facilities and arrange for them to be opened and closed. Do not enter the building(s) without prior approval. Keep the existing buildings and their contents secure at all times. Provide temporary closures as required to maintain security. Contract personnel will not be permitted in security-regulated buildings or areas unless cleared by the Security Officer.

- b. All Contractor employees shall obtain the required employee and vehicle passes. Follow guidance per Attachment A. Each employee shall wear the Government issued badge over the front of the outer clothing. Failure to obtain security and base access passes shall not be a cause for contract performance time extension. The Contractor shall immediately turn in all terminated employee's badges to the issuing office.
- c. Personnel will be issued appropriate identification badges when the Contractor submits the base access table with all required information. The table will be provided upon award of each task order. The following lead times are required for background checks and processing: US Citizens seven working days; Djiboutian or Somali nationals, 14 working days; Third country national 21 days.
- d. For Truck deliveries, two working days prior to delivery is required for access. Driver and truck information shall be provided.
- e. Contractor Vehicles: All vehicles shall display a valid license plate and shall be maintained in good repair. Proof of insurance and driver's licenses are required to obtain a station vehicle pass. Vehicle access requests shall be submitted three working days prior to the required access start date. The vehicle operator's access must be requested in advance and in accordance with paragraph b.
- f. Work Hours: Unless otherwise indicated, work will be located on a Government compound, military installation, or station. Contractor work hours shall be between 0730 and 1600 Sunday through Thursday. Obtain advance approval from the Contracting Officer for Contractor personnel to remain on site beyond normal working hours. Notify the Contracting Officer at least 48 hours in advance to obtain approval for access to the jobsite or work outside of normal working hours or on Friday, Saturday, and Federal Holidays.
- g. Contractor Personnel: Provide the ROICC and KO the name(s) of the supervisory person(s) authorized to act for the Contractor. Provide, and update as required, a list of the key personnel for the Contractor and subcontractors including addresses and telephone numbers for use in the event of an emergency.
- h. Contractor employees shall conduct themselves in a proper, efficient, courteous and businesslike manner. Remove from the site any individual whose continued employment is deemed by the ROICC and/or KO to be contrary to the public interest or inconsistent with the best interests of National Security.

SECURITY REQUIREMENTS

All security requirements apply to all subcontractors and suppliers associated with this contract:

- a. Do not publicly disclose any information concerning any aspect of the materials or services relating to this contract, without prior written approval of the Contracting Officer.
- b. Do not disclose or cause to be disseminated any information concerning the operations of the activity's security or interrupt the continuity of its operations.
- c. Do not disclose any information to any person not entitled to receive it. Failure to safeguard any classified information that may come to the Contractor or any person under his control, may subject the Contractor, his agents or employees to criminal liability under 18 U.S.C., Sections 793 and 798.

SECTION F: DELIVERIES OR PERFORMANCE

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PARA NO.	CLAUSE NO.	TITLE
F.1	N/A	PRE-PERFORMANCE CONFERENCE
F.2	N/A	LIST OF KEY PERSONNEL AND THEIR QUALIFICATIONS
F.3	N/A	CONTRACTOR ORGANIZATIONAL CHART
F.4	52.236-15	CONSTRUCTION SCHEDULE
F.5	N/A	CONTRACTOR SAFETY SELF-EVALUATION CHECKLIST
F.6	N/A	PROOF OF QUALIFICATIONS FOR CRANE OPERATOR(S)
F.7	N/A	GENERAL ACCIDENT PREVENTION PLAN
F.8	N/A	SITE SAFETY AND HEALTH PERSONNEL RESUMES
F.9	N/A	COMPETENT OR QUALIFIED PERSON(S) QUALIFYING SKILLS STATEMENT(S)
F.10	N/A	ACCIDENT INVESTIGATION REPORT
F.11	N/A	GENERAL JOC CONSTRUCTION QUALITY CONTROL PLAN
F.12	N/A	QC INSPECTION FILE AND CORRECTIVE AND PREVENTION ACTION LIST
F.13	N/A	CONTRACTOR DAILY QUALITY CONTROL REPORT
F.14	N/A	TRAFFIC CONTROL PLAN
F.15	N/A	ENVIRONMENTAL PROTECTION PLAN
F.16	N/A	WASTE DETERMINATION DOCUMENTATION
F.17	N/A	TASK ORDER SPECIFIC WASTE MANAGEMENT PLAN
F.18	N/A	CONFINED SPACE ENTRY PLAN
F.19	N/A	CRANE CRITICAL LIFT PLAN
F.20	N/A	ACTIVITY HAZARD ANALYSIS (AHA)
F.21	N/A	WHE ACCIDENT (CRANE AND RIGGING GEAR) FORM AND REPORT

REFERENCES

EM 385-1-1	(2014) USACE Safety and Health Requirements Manual
29 CFR 1926.16	Code of Federal Regulation - Rules of Construction
ASSP Z490.1	(2016) Criteria for Accepted Practices in Safety, Health, and Environmental Training
29 CFR 1910.146	Code of Federal Regulation – Permit-Required Confined Spaces
ASSP Z359.0	(2018) Definitions and Nomenclature Used for Fall Protection and Fall Arrest
NEMA Z535.2	(2011; R 2017) Environmental and Facility Safety Signs
29 CFR 1926.1400	Code of Federal Regulation – Cranes and Derricks in Construction
40 CFR 262.11	Code of Federal Regulation – Hazardous Waste Determination and Recordkeeping
EPA SW-846	Environmental Protection Agency Test Methods for Evaluating Solid Waste: Methods
40 CFR 261	Code of Federal Regulation – Identification and Listing of Hazardous Waste
MUTCD, Part VI	Federal Highway Administration, (2009) Manual on Uniform Traffic Control Devices
OPNAV 5090.1	Overseas Environmental Baseline Guidance Document (OEBGD)

SECTION F – DELIVERIES OR PERFORMANCE

- F.1 PRE-PERFORMANCE CONFERENCE**
Within 30 days of contract award, the Contractor will meet in conference with representatives of the KO, at a time to be determined by the KO, to discuss and develop mutual understanding relative to scheduling and administration of the work.
- F.2 LIST OF KEY PERSONNEL AND THEIR QUALIFICATIONS**
Contractor personnel are required to obtain personnel identification badges. A copy of the list of key personnel will be forwarded to the CLDJ and Somalia Security Department by the ROICC. The key

personnel are responsible for identifying other Contractor and subcontractor personnel for obtaining identification badges. Contractors working in restricted work areas are also required to obtain special identification badges for personnel requiring access to the restricted work areas.

F.3 CONTRACTOR ORGANIZATIONAL CHART

Provide a chart showing the Quality Control (QC) organizational structure and its relationship to the production side of the organization.

F.4 CONSTRUCTION SCHEDULE

Prepare for approval a Project Schedule, pursuant to FAR Clause 52.236-15 Schedules for Construction Contracts. Show in the schedule the proposed sequence to perform the work and dates contemplated for starting and completing all schedule activities. The project schedule shall be created using MS-Project and the scheduling of the entire project is required. The scheduling of engineering services and construction is the responsibility of the Contractor. Contractor management personnel must actively participate in its development. Provide a schedule that is a forward planning as well as a project monitoring tool. Use the Critical Path Method (CPM) of network calculation to generate all Project Schedules. Prepare each Project Schedule using the Precedence Diagram Method (PDM).

Mandatory Tasks. Include the following activities/tasks in the initial project schedule and all updates.

- a. Submission, review and acceptance of SD-01 Preconstruction Submittals (individual activity for each.)
- b. Submission of mechanical/ electrical/ information systems layout drawings
- c. Long procurement activities
- d. Submission and approval of O&M manuals
- e. Submission and approval of as-built drawings
- f. Submission and approval of DD1354 data and installed equipment lists
- g. Submission and approval of testing and air balance (TAB)
- h. Submission and approval of fire protection specialist
- i. Air and water balancing
- j. Building commissioning
- k. Controls testing plan submission
- l. Controls testing
- m. Performance Verification testing
- n. Contractor's pre-final inspection
- o. Correction of punch list from Contractor's pre-final inspection
- p. Government's pre-final inspection
- q. Correction of punch list for Government's pre-final inspection
- r. Final inspection.

Preliminary Project Schedule Submission. Within 15 calendar days after task order award, submit the Preliminary Project Schedule defining the planned operations detailed for the first 90 calendar days for approval. The Preliminary Project Schedule forms the basis for the Initial Project Schedule and must include all of the required plan and program preparations, submissions and approvals identified in the Contract (e.g., Quality Control Plan, Safety Plan, and Environmental Protection Plan) and other non-construction activities intended to occur within the first 90 calendar days.

Initial Project Schedule. Submit the Initial Project Schedule for approval within 42 calendar days after task order award. The schedule must demonstrate a reasonable and realistic sequence of activities which represent all work through the entire contract performance period.

Project Scheduler Qualifications. Designate an authorized representative to be responsible for the preparation of the schedule and all required updating and production of reports. The authorized representative must have a minimum of two years' experience scheduling construction projects similar in size and nature to this project. Representative must have a comprehensive knowledge of CPM scheduling principles and application.

F.5 CONTRACTOR SAFETY SELF-EVALUATION CHECKLIST

Complete the checklist monthly and submit with each request for payment voucher. The Contractor Safety Self-Evaluation checklist can be found on the Whole Building Design Guide website at www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/ufgs-01-35-26.

F.6 PROOF OF QUALIFICATIONS FOR CRANE OPERATOR(S)

Provide operators, signal persons, and riggers meeting the requirements in EM 385-1-1, Section 15.B for riggers and Section 16.B for crane operators and signal persons.

F.7 GENERAL ACCIDENT PREVENTION PLAN

A qualified person must prepare the written general Accident Prevention Plan (APP). Prepare the APP in accordance with the format and requirements of EM 385-1-1, Appendix A. Cover all paragraphs and subparagraph elements in EM 385-1-1, Appendix A. The general APP will be used as a template for job-specific APP produced with each task order. The APP must interface with the Contractor's overall safety and health program. Describe the methods to evaluate past safety performance of potential subcontractors in the selection process. Describe innovative methods used to ensure and monitor safe work practices of subcontractors. The Government considers the Prime Contractor to be the "controlling authority" for all work site safety and health of the subcontractors. Contractors are responsible for informing their subcontractors of the safety provisions under the terms of the Contract and the penalties for noncompliance and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out.

The APP must be signed by an officer of the firm (Prime Contractor senior person), the individual preparing the APP, the on-site superintendent, the designated SSHO, the Contractor Quality Control Manager, and any designated Certified Safety Professional (CSP) or Certified Health Physicist (CIH). The SSHO must provide and maintain the APP and a log of signatures by each subcontractor foreman, attesting that they have read and understand the APP, and make the APP and log available on-site to the Contracting Officer's Representative. If English is not the foreman's primary language, the Prime Contractor must provide an interpreter.

Submit the General Accident Prevention Plan (APP) to the KO within 30 calendar days of Contract award. Work cannot proceed without an accepted General APP and job-specific APP. Once reviewed and accepted by the KO, the APP and attachments will be enforced as part of the Contract. Continuously review and amend the APP, as necessary, throughout the life of the Contract. Changes to the accepted General APP must be made with the knowledge and concurrence of the KO, project superintendent, SSHO and Quality Control Manager. Incorporate unusual or high hazard activities not identified in the original, general APP as they are discovered. Should any severe hazard exposure (i.e. imminent danger) become evident, stop work in the area, secure the area, and develop a plan to remove the exposure and control the hazard. Notify the KO within 24 hours of discovery. Eliminate and remove the hazard. In the interim, take all necessary action to restore and maintain safe working conditions in order to safeguard onsite personnel, visitors, the public (as defined by ASSP A10.34), and the environment.

F.8 SITE SAFETY AND HEALTH PERSONNEL RESUMES

Provide a Site Safety and Health Officer (SSHO) that meets the requirements of EM 385-1-1, Section 1. The SSHO must ensure that the requirements of 29 CFR 1926.16 are met for the project. Provide a Safety oversight team that includes a minimum of one person at each project site to function as the Site Safety and Health Officer (SSHO). The SSHO or an equally qualified Alternate SSHO must be at the work site at all times to implement and administer the Contractor's safety program and Government-accepted Accident Prevention Plan. The SSHO and Alternate SSHO must have the required training, experience, and qualifications in accordance with EM 385-1-1 Section 01.A.17, and all associated sub-paragraphs.

If the SSHO is off-site for a period longer than 24 hours, an alternate SSHO must be provided to fulfill the same roles and responsibilities. When the SSHO is temporarily (up to 24 hours) off-site, a Designated Representative (DR) may be used in lieu of an Alternate SSHO, and must be on the project site at all times when work is being performed. Note that the DR is a collateral duty safety position. The SSHO must have completed a 40 hour contract safety awareness course based on the content and principles of EM 385-1-1, as instructed in accordance with the guidelines of ASSP Z490.1, by a trainer meeting the Competent

Trainer requirements. If the SSHO does not have a current certification, certification must be obtained within 60 days, maximum, of Contract award.

The SSHO may not serve as the Superintendent.

F.9 COMPETENT OR QUALIFIED PERSON(S) QUALIFYING SKILL STATEMENT(S)

The Competent Person (CP) or Qualified Person (QP) is a person designated in writing, who, through training, knowledge and experience, is capable of identifying, evaluating, and addressing existing and predictable hazards in the working environment or working conditions that are dangerous to personnel, and who has authorization to take prompt corrective measures concerning such hazards. The Competent Person identified in the Contractor's Safety and Health Program and accepted Accident Prevention Plan, must be on-site at all times when the work that presents the hazards associated with their professional expertise is being performed. Provide the credentials of the Competent Person(s) to the Contracting Officer's Representative for information in consultation with the Safety Office.

Competent Person, Confined Space. The CP, Confined Space, is a person meeting the competent person requirements as defined by EM 385-1-1, Appendix Q, with thorough knowledge of OSHA's Confined Space Standard, 29 CFR 1910.146, and designated in writing to be responsible for the immediate supervision, implementation, and monitoring of the confined space program.

Competent Person, Cranes and Rigging. The CP, Cranes and Rigging, as defined in EM 385-1-1, Appendix Q, is a person meeting the competent person requirements, who has been designated in writing to be responsible for the immediate supervision, implementation and monitoring of the Crane and Rigging program.

Competent Person, Excavation/Trenching. A CP, Excavation/Trenching, is a person meeting the competent person requirements as defined in EM 385-1-1, Appendix Q and 29 CFR 1926, who has been designated in writing to be responsible for the immediate supervision, implementation and monitoring of the excavation/trenching program.

Competent Person, Fall Protection. The CP, Fall Protection, is a person meeting the competent person requirements as defined in EM 385-1-1, Appendix Q and in accordance with ASSP Z359.0, who has been designated in writing by the employer to be responsible for immediate supervision, implementation, and monitoring of the fall protection program.

Competent Person, Scaffolding. The CP, Scaffolding, is a person meeting the competent person requirements in EM 385-1-1, Appendix Q, and designated in writing by the employer to be responsible for immediate supervision, implementation, and monitoring of the scaffolding program. CP qualifications must be documented including experience on the specific scaffolding systems/types being used, assessment of the base material that the scaffold will be erected upon, load calculations for materials and personnel, and erection and dismantling. The CP for scaffolding must have a documented minimum of 8 hours of scaffold training to include training on the specific type of scaffold being used (e.g. mast-climbing, adjustable, tubular frame), in accordance with EM 385-1-1, Section 22.B.02.

Competent Person (CP) or Qualified Person Trainer. A competent person trainer as defined in EM 385-1-1, Appendix Q, who is qualified in the training material presented, and who possesses a working knowledge of applicable technical regulations, standards, equipment, and system related to the subject matter on which they are training Competent Persons. Individuals qualified to instruct the 40 hour contract safety awareness course, or portions thereof, must meet the definition of a Competent Person Trainer, and, at a minimum, possess a working knowledge of the following subject areas: EM 385-1-1, Electrical Standards, Lockout/Tag out, Fall Protection, Confined Space Entry for Construction; Excavation, Trenching and Soil Mechanics; and Scaffolds in accordance with 29 CFR 1926.450, Subpart L.

F.10 ACCIDENT INVESTIGATION REPORT

Conduct an accident investigation for recordable injuries and illnesses, property damage, and near misses as defined in EM 385-1-1, to establish the root cause(s) of the accident. Complete the applicable NAVFAC

Contractor Incident Reporting System (CIRS), and electronically submit via the NAVFAC Enterprise Safety Applications Management System (ESAMS). Complete and submit an accident investigation report in ESAMS within 5 days for mishaps defined in EM 385-1-1 01.D.03 and 10 days for accidents defined by EM 385-1-1 01.D.05. Complete an investigation report within 30 days for those mishaps defined by EM 385-1-1 01.D.04. Mishaps defined by EM 385-1-1 01.D.04 and 01.D.05 must include a written report submitted as an attachment in ESAMS using the following outline: (1) Mishap summary description to include process, findings, and outcomes; (2) Root Cause; (3) Direct Factors; (4) Indirect and Contributing Factors; (5) Corrective Actions; and (6) Recommendations. Complete the applicable USACE Accident Report Form 3394, and provide the report to the ROICC and/or Contracting Officer within five calendar days of the accident.

Near Misses: Complete the applicable documentation in NAVFAC Contractor Incident Reporting System (CIRS), and electronically submit via the NAVFAC Enterprise Safety Applications Management System (ESAMS). Near miss reports are considered positive and proactive Contractor safety management actions.

F.11 GENERAL JOC CONSTRUCTION QUALITY CONTROL PLAN

Contractor must provide a general Construction Quality Control (CQC) Plan with 30 calendar days of Contract award, for review and approval by the Contracting Officer. The Contractor's plan must include the following:

- a. The QC organization for the Contract, including member resumes.
- b. A letter from an officer of the company designating the QC Manager and Alternate QC Manager and their authority.
- c. QC Manager Qualifications in resume format.
- d. Outline List of potential DFW. DFW is a task that is separate and distinct from other tasks and has control requirements and work crews unique to the task.
- e. Outline of a plan to implement the "Three Phases of Control" for each DFW.
- f. Outline of a testing plan with log and list of potential personnel and accredited laboratories for performing tests. Construction materials testing laboratories must be accredited by a laboratory accreditation authority and will be required to submit a copy of the Certificate of Accreditation and Scope of Accreditation with the testing plan.

Three Phases of Control. The three phases of control must adequately cover both on-site and off-site work and must include the following for each DFW.

- i. Preparatory Phase: Discussion of specific controls used in construction methods, construction tolerances, workmanship standards, and the approach that will be used to provide quality construction by planning ahead and identifying potential problems for each DFW.
- ii. Initial Phase: Ensure that testing is performed by approved laboratory and ensure necessary inspections are performed.
- iii. Follow-Up Phase: Ensure the work is in compliance with Contract requirements and ensure that rework items are being corrected.

F.12 QC INSPECTION FILE AND CORRECTIVE AND PREVENTION ACTION LIST

Punch-Out Inspection. Near the completion of all work, the QC Manager must conduct an inspection of the work and develop a punch list of items which do not conform to the approved drawings and specifications. Include in the punch list any remaining items of the "Rework Items List", which were not corrected prior to the Punch-Out inspection. The punch list must include the estimated date by which the deficiencies will be corrected. A copy of the punch list must be provided to the Contracting Officer. The QC Manager or staff must make follow-on inspections to ascertain that all deficiencies have been corrected. Once this is accomplished, the Contractor must notify the Government that the facility is ready for the Government "Pre-Final Inspection".

Pre-Final Inspection. The Government and QC Manager will perform this inspection to verify that the facility is complete and ready to be occupied. A Government pre-final punch list may be developed as a result of this inspection. The QC Manager must ensure that all items on this list are corrected prior to notifying the Government that a "Final Inspection" with the customer can be scheduled. Any items noted

on the “Pre-Final Inspection” must be corrected in a timely manner and must be accomplished before the contract completion date for the work or any particular increment thereof.

Final Acceptance Inspection. The QC Manager, the superintendent, or other Contractor management personnel and the Contracting Officer’s Representative will be in attendance at this inspection. Additional Government personnel may be in attendance. The final acceptance inspection will be formally scheduled by the Contracting Officer’s Representative based upon results of the “Pre-Final Inspection”. Notice must be given to the KO at least 14 days prior to the final inspection. The notice must state that all specific items previously identified to the Contractor as being unacceptable will be complete by the date scheduled for the final acceptance inspection.

Inspection File Documentation. Maintain current and complete records of on-site and off-site QC program operations and activities. Reports are required for each day work is performed. Account for each calendar day throughout the life of the Contract. The QC Manager must prepare and sign the CQC reports. The reporting of work must be identified by terminology consistent with the construction schedule. Provide remarks in the report relating to directions received, problems encountered during construction, work progress and delays, conflicts or errors in the drawings or specifications, field changes, safety hazards encountered, instructions given and corrective actions taken, delays encountered and record of visitors to the work site.

F.13 CONTRACTOR DAILY QUALITY CONTROL REPORT

Maintain a Daily Quality Control Report verifying quality of workmanship is in compliance with task order requirements and test results meet the standards indicated in RFP. Daily Quality Control Report must indicate the time and method of resolution of rework items.

F.14 TRAFFIC CONTROL PLAN

Conduct operations in a manner that will not close a thoroughfare or interfere with traffic on highways except with written permission of the ROICC at least 15 calendar days prior to the proposed modification date, and provide a Traffic Control Plan for Government approval detailing the proposed controls to traffic movement for approval. The plan must be in accordance with U.S. and host nation regulations and the MUTCD, Part VI.

F.15 ENVIRONMENTAL PROTECTION PLAN

Meet with the Contracting Officer’s Representative to discuss the proposed Environmental Protection Plan (EPP) ten (10) days after the award of Contract. Submit the EPP for further discussion, review and approval fourteen (14) days after the meeting.

The purpose of the EPP is to present an overview of known or potential environmental issues that must be considered and addressed during construction. Incorporate construction related objectives and targets from the installation’s EMS into the EPP. Include in the EPP measures for protecting natural and cultural resources, required reports and other measures to be taken. Meet with the Contracting Officer’s Representative to discuss the EPP and develop a mutual understanding relative to the details for environmental protection including measures for protecting natural resources, required reports and other measures to be taken. Revise the EPP throughout the project to include any reporting requirements, changes in site conditions, or contract modifications that change the project scope of work in a way that could have an environmental impact. No requirement in this section will relieve the Contractor of any applicable U.S. or host nation environmental protection laws and regulations. During Construction, identify, implement, and submit for approval any additional requirements to be included in the EPP. Maintain the current version onsite.

Environmental Manager. Appoint in writing an Environmental Manager for the project site. The Environmental Manager is directly responsible for coordinating contractor compliance with U.S. and host nation requirements. The Environmental Manager must ensure compliance with Hazardous Waste Program requirements (including hazardous waste handling, storage, manifesting, and disposal); implement the EPP; ensure compliance with Stormwater Program requirements; ensure compliance with Hazardous Materials (storage, handling and reporting) requirements; and coordinate any remediation of regulated substances

(lead, asbestos, PCB transformers). This can be a collateral position; however, the person in this position must be trained to adequately accomplish the following duties: ensure waste segregation and storage compatibility requirements are met; inspect and manage Satellite Accumulation areas; ensure only authorized personnel add wastes to containers; ensure Contractor personnel are trained in 40 CFR requirements in accordance with their position requirements; coordinate removal of waste containers; and maintain the Environmental Records binder and required documentation. Submit Environmental Manager Qualifications to the KO.

F.16 WASTE DETERMINATION DOCUMENTATION

Complete a Waste Determination form (provided at the pre-construction conference) for Contractor-derived wastes to be generated. All potentially hazardous solid waste streams that are not subject to a specific exclusion or exemption from the hazardous waste regulations (e.g., scrap metal, domestic sewage) or subject to special rules, (lead-acid batteries and precious metals) must be characterized in accordance with the requirements of 40 CFR 262.11 or corresponding applicable U.S. or host nation regulations. Base waste determination on user knowledge of the processes and materials used, and analytical data when necessary. Consult with the Installation environmental staff for guidance on specific requirements. Attach support documentation to the Waste Determination form. As a minimum, provide a Waste Determination form for the following waste (this listing is not inclusive): oil- and latex-based painting and caulking products, solvents, adhesives, aerosols, petroleum products and containers of the original materials.

Waste Sampling. Sample waste in accordance with EPA SW-846. Clearly mark each sampled drum or container with the Contractor's identification number, and cross reference to the chemical analysis performed.

Laboratory Analysis. Follow the analytical procedure and methods in accordance with the 40 CFR 261. Provide analytical results and reports performed to the KO. Coordinate all activities with Installation Hazardous Waste Manager.

Analysis Type: Identify hazardous waste by analyzing for the following characteristics: ignitability, corrosivity, reactivity, toxicity based on TCLP results.

F.17 TASK ORDER SPECIFIC WASTE MANAGEMENT PLAN

Include the Solid Waste Management Plan as part of the Environmental Protection Plan (EPP). Identify each solid-waste disposal facility, including: the type of facility, name, physical address, phone numbers, issuing authority and approval signature, permitted entity and period of issuance for waste.

F.18 CONFINED SPACE ENTRY PLAN

Provide plan in the Accident Prevention Plan (APP) in accordance with the requirements outlined in Appendix A of EM 385-1-1. Entry plan must include an on-site rescue and recovery plan and procedure, which does not rely on local emergency responders for rescue.

Prohibit entry into a confined space by personnel for any purpose including hot work, until the qualified person has conducted appropriate tests to ensure the confined or enclosed space is safe for the work intended and that all potential hazards are controlled or eliminated and documented. Comply with EM 385-1-1, Section 34 for entry procedures. Hazards pertaining to the space must be reviewed with each employee during review of the AHA.

Forced air ventilation is required for all confined space entry operations and the minimum air exchange requirements must be maintained to ensure exposure to any hazardous atmosphere is kept below its action level. Sewer wet wells require continuous atmosphere monitoring with audible alarm for toxic gas detection.

Provide permanent signs integral to or securely attached to access covers for new permit-required confined spaces. Signs for confined spaces must comply with NEMA Z535.2. Provide signs with wording: "DANGER – PERMIT REQUIRED CONFINED SPACE. DO NOT ENTER" in bold letters a minimum of

25 mm in height and constructed to be clearly legible with all paint removed. The signal word “DANGER” must be red and readable from 1520 mm.

F.19 CRANE CRITICAL LIFT PLAN

Provide a Critical Lift Plan as required by EM 385-1-1, Section 16.H.01, using Form 16-3. Critical lifts require detailed planning and additional or unusual safety precautions. Develop and submit a critical lift plan to the Contracting Officer’s Representative 30 calendar days prior to critical lift. Comply with load testing requirements in accordance with EM 385-1-1, Section 16.F.03. For lifts of personnel, in addition to the requirements of EM 385-1-1, Section 16.H.02, demonstrate compliance with the requirements of 29 CFR 1926.1400 and EM 385-1-1, Section 16.T.

F.20 ACTIVITY HAZARD ANALYSIS (AHA)

Before beginning each activity, task or Definable Feature of Work (DFOW) involving a type of work presenting hazards not experienced in previous project operations, or where a new work crew or subcontractor is to perform the work, the Contractor(s) performing that work activity must prepare an AHA. AHAs must be developed by the Prime Contractor, subcontractor, or supplier performing the work, and provided for Prime Contractor review and approval before submitting to the KO. AHAs must be signed by the SSHO, Superintendent, QC Manager and the subcontractor Foreman performing the work. Format the AHA in accordance with EM 385-1-1, Section 1 or as directed by the KO. Submit the AHA for review at least 15 working days prior to the start of each activity task, or DFOW. The Government reserves the right to require the Contractor to revise and resubmit the AHA if it fails to effectively identify the work sequences, specific anticipated hazards, site conditions, equipment, materials, personnel and the control measures to be implemented.

AHAs must identify competent persons required for phases involving high-risk activities, including confined entry, crane and rigging, excavations, trenching, electrical work, fall protection, and scaffolding.

AHA Management. Review the AHA list periodically (at least monthly) at the Contractor supervisory safety meeting, and update as necessary when procedures, scheduling, or hazards change. Use the AHA during daily inspections by the SSHO to ensure the implementation and effectiveness of the required safety and health controls for that work activity.

AHA Signature Log. Each employee performing work as part of an activity, task or DFOW must review the AHA for that work and sign a signature log specifically maintained for that AHA prior to starting work on that activity. The SSHO must maintain a signature log on site for every AHA. Provide employees whose primary language is other than English, with an interpreter to ensure a clear understanding of the AHA and its contents.

F.21 WHE ACCIDENT (CRANE AND RIGGING GEAR) FORM AND REPORT

A WHE accident occurs when any one or more of the eight elements in the operation envelope fails to perform correctly during operation, including operation during maintenance or testing resulting in personnel injury or death; material or equipment damage; dropped load; derailment; two-blocking; overload; or collision, including unplanned contact between the load, crane or other objects. A dropped load, derailment, two-blocking, overload or collision are considered accidents, even though no material damage or injury occurs. A component failure (e.g., motor burnout, gear tooth failure, bearing failure) is not considered an accident solely due to material or equipment damage unless the component failure results in damage to other components (e.g., dropped boom, dropped load, or roll over). Document a WHE mishap or accident using the NAVFAC prescribed Navy Crane Center (NCC) accident form.

SECTION G: CONTRACT ADMINISTRATION DATA

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G.1. ADMINISTRATIVE CONTRACTING OFFICER (ACO)

Administration of the Task Orders under this contract will be performed by the Resident Officer in Charge of Construction (ROICC) of the Public Works Departments (PWD).

G.2. PAYMENT OFFICE ADDRESS

Specified on each individual task order.

G.3. IDENTIFICATION OF CORRESPONDENCE

All correspondence and data submitted by the Contractor shall reference the appropriate contract number and the number and title of the delivery order.

G.4. INVOICING INSTRUCTIONS

Content of Invoice

Requests for payment will be processed in accordance with the Contract Clause FAR 52.232-27, Prompt Payment Construction Contracts and FAR 52.232-5, Payments Under Fixed-Price Construction Contracts. The requests for payment shall include the documents listed below.

- a. The Contractor's invoice, on NAVFAC Form 7300/30 furnished by the Government, showing in summary form, the basis for arriving at the amount of the invoice. Form 7300/30 shall include certification by Quality Control (QC) Manager as required by the contract.
- b. The Contract Performance Statement on NAVFAC Form 7300/31 furnished by the Government showing in detail: the estimated cost, percentage of completion, and value of completed performance.
- c. Updated Project Schedule and reports required by the contract.
- d. Contractor Safety Self Evaluation Checklist.
- e. Other supporting documents as requested.
- f. Updated copy of submittal register.
- g. Invoices not completed in accordance with contract requirements will be returned to the Contractor for correction of the deficiencies.

- h. Final release (for final payment only)

Submission of Invoices

The maximum size of each WAWF attachment is two megabytes, but there are no limits on the number of attachments. If a document cannot be attached in WAWF due to system or size restriction it shall be provided as instructed by the KO.

Monthly invoices and supporting forms for work performed through the anniversary award date of the contract shall be submitted to the KO within five calendar days of the date of invoice. For example, contract award date is the 7th of the month, the date of each monthly invoice shall be the 7th and the invoice shall be submitted by the 12th of the month.

Final Invoice

- a. For each individual task order, a final invoice shall be accompanied by the certification required by DFARS 252.247.7023 TRANSPORTATION OF SUPPLIES BY SEA, and the Contractor's Final Release. If the Contractor is incorporated, the Final Release shall contain the corporate seal. An officer of the corporation shall sign and the corporate secretary shall certify the Final Release.
- b. For final invoices being submitted via WAWF, the original Contractor's Final Release Form and required certification of Transportation of Supplies by Sea must be provided directly to the respective KO prior to submission of the final invoice. Once receipt of the original Final Release Form and required certification of Transportation of Supplies by Sea has been confirmed by the KO, the Contractor shall then submit final invoice and attach a copy of the Final Release Form and required certification of Transportation of Supplies by Sea in WAWF.
- c. Final invoices not accompanied by the Contractor's Final Release and required certification of Transportation of Supplies by Sea will be considered incomplete and will be returned to the Contractor.

Payments to the Contractor

Payments will be made on submission of itemized requests by the Contractor, which comply with the requirements of this section, and will be subject to reduction for overpayments or increase for underpayments made on previous payments to the Contractor.

Obligation of Government Payments

The obligation of the Government to make payments required under the provisions of this contract will, at the discretion of the KO, be subject to reductions and/or suspensions permitted under the FAR and agency regulations including the following in accordance with "FAR 32.503-6:

- a. Reasonable deductions due to defects in material or workmanship;
- b. Claims which the Government may have against the Contractor under or in connection with this contract;
- c. Unless otherwise adjusted, repayment to the Government upon demand for overpayments made to the Contractor; and
- d. Failure to provide up to date record drawings.

Payment for Onsite and Offsite Materials

Progress payments may be made to the contractor for materials delivered on the site, for materials stored off construction sites, or materials that are in transit to the construction sites under the following conditions:

- a. FAR 52.232-5(b) Payments under Fixed Price Construction Contracts.
- b. Materials delivered on the site but not installed, including completed preparatory work, and off- site materials to be considered for progress payment shall be major high cost, long lead, special order, or specialty items, not susceptible to deterioration or physical damage in storage or in transit to the construction site. Examples of materials acceptable for payment consideration include, but are not limited to, structural steel, non-magnetic steel, non-magnetic aggregate, equipment, machinery, large pipe and fittings, precast/prestressed concrete products, plastic lumber (e.g., fender piles/curbs), and high-voltage electrical cable. Materials not acceptable for payment include consumable materials such as nails, fasteners, conduits, gypsum board, glass, insulation, and wall coverings.
- c. Materials to be considered for progress payment prior to installation shall be specifically and separately identified in the Contractor's estimates of work submitted for the KO's approval in accordance with Schedule of Prices requirement of this contract. Requests for progress payment consideration for such items shall be supported by documents establishing their value and that the title requirements of the clause at FAR 52.232-5 have been met.
- d. Materials are adequately insured and protected from theft and exposure.
- e. Provide a written consent from the surety company with each payment request for offsite materials.

G.5. RETENTION, WITHHOLDING OF FUNDS, AND DISALLOWANCES

If the Contractor fails to maintain the record drawings as required by each task order, the KO will consider that satisfactory progress has not been achieved for the period in question, thereby requiring the retention of 10% of any payments to be made until such drawings are made current. Additionally, the estimated cost of maintaining the record drawings will be retained from any such payments until satisfactory progress is maintained.

The KO may disallow payment for invoiced items of work if Government review reveals the work was not performed, and/or a required applicable submittal has not been approved.

G.6. SUPERINTENDENCE

Unless specified otherwise in the individual Task Orders, the Contractor shall provide supervision in accordance with FAR Clause 52.236-6, "SUPERINTENDENCE BY THE CONTRACTOR" as follows:

- (1) When any combination of Task Orders, at any one geographic installation Ordering Office exceeds \$100,000, a minimum of one full-time superintendent is required at that installation/Ordering Office. The superintendent shall be at the installation/Ordering Office at all times when work is being performed.
- (2) When any individual Task Order exceeds \$100,000, a full-time superintendent is required to be at the job site of that Task Order at all times when work is being performed.

The superintendent shall be able to converse in and understand the English language. If any Task Order involves non-English speaking workers, the Contractor shall provide the ability to translate instructions to the entire work force.

The superintendent(s) shall be authorized by the Contractor to maintain sufficient civilian personnel to accomplish all phases of the work in a satisfactory and acceptable manner and to discharge for cause unsatisfactory employees.

It shall be the responsibility of the Contractor to provide a responsible official of the company to represent

him in all matters pertaining to work under this contract. He shall be available, in person, by telephone, to respond to any and all problems to the Contracting Officer's Representative at all times when work is being performed.

The cost of superintendence is included in the contractor's coefficient and will not be compensated separately.

G.7. PROPOSED MATERIAL SUBMITTALS, CATALOG DATA, AND SAMPLES

Proposed material submittals required of the Contractor shall be made allowing sufficient time for processing, reviews, approval, and procurement before the Contractor is ready to use the material. Material installed prior to written submittal approval will be at risk of removal and replacement at the Contractor's expense. Submittals for long lead time manufacturers' items shall be submitted with the Contractor's proposal at the Government's request.

The Contractor shall certify on all submittals that the material being proposed conforms to contract requirements and can be installed in the space provided.

Deviations from Task Order requirements are discouraged. In the event the Contractor determines that a deviation is necessary, the Contractor shall state under separate cover letter specifically what portion varies, why deviation is necessary, and include a complete breakdown of the difference in cost, either additive or deductive, in compliance with the terms of this contract.

- (1) Request for deviations and/or variations shall NOT be included on submittals. If a deviation of material is approved by the KO, the material can be submitted in the normal manner with a copy of the letter or approval attached. Incomplete submittals and submittals with inadequate data will be rejected.
- (2) Warrants for deviations: If the Contractor determines a deviation is necessary, the Contractor shall warrant that: The entire contract has been reviewed in order to establish that the deviation, when incorporated, will be compatible with all other elements of construction and that the Contractor shall take any action and bear any additional expense which may arise by reason of incorporating the proposed deviation, including, but not limited to, change in this or other elements of construction resulting from the incompatibility of the proposed deviation with any other element of construction.

When required, catalog data shall be on printed pages on permanent copies of the manufacturer's catalogs.

Samples in the quantity specified shall be marked to show the name of the material, the name of the supplier, the contract number, delivery order number, the segment of work where the material represented by the sample is to be used, and the name of the Contractor submitting the sample.

Technical Publications: The Contractor shall furnish four copies of installation, operation and maintenance manuals for all mechanical and electrical equipment as well as for the other systems or products when such manuals are required by the equipment being installed.

G.8. COMMUNICATION WITH THE GOVERNMENT

All documentation between the Contractor and the Government, including the proposals and award documents, shall be accomplished electronically utilizing e-mail or MS Teams, to the greatest extent possible. The Contractor shall make provisions for the printing of electronic drawings to paper copy as needed for their own use. Web-based construction management systems, such as NAVFAC's WebCM, may be required by Ordering Offices to process Daily Reports, RFI's and submittals on individual Task Orders.